



**Request for Proposal No.
AGENCY23-PURC-5020
Armed and Unarmed Security Guard Services**

**San Bernardino County
Purchasing Department
777 East Rialto Avenue
San Bernardino, CA 92415-0760
July 2023**

I. INTRODUCTION

A. Purpose

The San Bernardino County Purchasing Department, hereafter referred to as the “County”, is seeking proposals from interested and qualified Proposers to provide armed and unarmed security guard services, including all management, organization, operation, supervision, labor, equipment, materials, transportation, and supplies necessary for such services. One or more contractors may be selected to provide armed and unarmed guard services on a regular basis, for on call emergency services and/or special events.

B. RFP Contact

All correspondence, including Proposals and questions, must be submitted to the person identified below.

(RFP Contact):

San Bernardino County Purchasing Department
777 E. Rialto Ave.
San Bernardino, CA 92415-1005
Attn: Jessica Barajas
Phone: (909) 387-2065
Email: Jessica.Barajas@pur.sbcounty.gov

Proposals will not be accepted by email or facsimile. Proposals must be submitted electronically through the County Electronic Procurement Network (ePro), and/or via hard copy with original signature submitted to the address indicated above by the Deadline for Proposals specified in Section II Proposal Timeline. All Proposers must register with the ePro system prior to the date and time to submit the proposal or they will be disqualified.

C. RESERVED

D. Contract Term

Services to be provided under this Request for Proposals (RFP) are outlined under Section V, Scope of Work. The Contract period will be for a maximum of three years beginning on March 01, 2024, and ending on February 28, 2027. The contract term may be extended for two additional one-year periods by mutual agreement of the parties.

E. Location of Services

Location(s) where Services are to be provided, completed, and managed are described in Exhibit B.

The Proposer must include in Proposal, Attachment E – Fee Proposal Sheet(s), all transportation, lodging, and per diem costs sufficient to pay its personnel and travel to the aforementioned locations.

F. Assistance to Proposers with a Disability

Proposers with a disability may request accommodation regarding the means of communicating this RFP or participating in the procurement process. For more information, contact the RFP Contact no later than ten (10) days prior to the Deadline for Proposals.

II. PROPOSAL TIMELINE

Release of RFP	July 19, 2023, at 8:00 am (PST)
Proposal Conference	July 26, 2023, at 10:00 am (PST)
Deadline for Submission of Questions	August 02, 2023, at 4:00 pm (PST)
Deadline for Proposals	August 25, 2023, at 4:00 PM (PST)
Presentation/Demonstration	September, 2023
Date for Tentative Contract Award	November 2023

The above dates are subject to change as deemed necessary by the County.

Proposal Conference:

A Proposal Conference will be held (In-Person) only:

Wednesday, July 26, 2023, 10:00 am (PST)
San Bernardino County Purchasing Department
777 E. Rialto Ave.
San Bernardino, CA, 92415

Note: Questions regarding the contents of this RFP must be submitted in writing on or before the Deadline for Submission of Questions and directed to the RFP Contact. All questions will be answered, and both the question and answer will be posted as an Addendum to the RFP in ePro.

III. DEFINITIONS

Capitalized terms used in this RFP shall have the meanings given to them in the RFP and as defined below:

ASIS International: American Society for Industrial Security.

Board: The San Bernardino County Board of Supervisors.

Contract: The Contract between the County and the Proposer resulting from the award issued pursuant to this RFP to the successful Proposer.

Contractor: Any individual, company, firm, corporation, partnership or other organization to whom a contract award is made by the County.

Facilitator: A County Purchasing Department buyer or designated individual tasked with managing the processes of the evaluation panel.

Proposal: The offer to provide specific goods or services at specified prices and/or other conditions specified in the RFP.

Portfolio Manager: The Portfolio Manager leads all management, supervisory, and support personnel assigned to the San Bernardino County account(s). The portfolio manager must maintain a current membership with ASIS International for the duration of the contract.

Any management, supervisory, and support personnel that are part of the Contractor's management structure including, but not limited to, the "Portfolio Manager" shall be approved in writing by the County prior

to the placement of the Contractor's personnel. The County reserves the right to request a change to the Contractor's personnel as needed or desired by the County at any given time.

Purchasing Agent: The Director of the County Purchasing Department.

Request For Proposal (RFP): The request for an offer from Proposers interested in providing the identified services sought to be procured by the County. The RFP specifies the evaluation factors to be used and contains or incorporates by reference contractual terms and conditions applicable to the procurement.

Services: The requested professional services described in this RFP.

Shift: A "Shift" shall be defined as any work period requested by the County, not to exceed a total of eight (8) working hours, i.e., a request for a 4-hour work assignment will constitute a 4-hour full "Shift."

Subcontractor: An individual, company, firm, corporation, partnership, or other organization, not in the employment of or owned by Contractor who is performing services on behalf of Contractor under the Contract or under a separate contract with or on behalf of Contractor.

IV. PROPOSAL CONDITIONS

A. Authorized Signatures

All proposals must be signed by an individual authorized to bind the Proposer to the provisions of the RFP.

B. Term of Offer

Proposals shall remain open, valid, and subject to acceptance anytime within 270 days after Proposal submission.

C. Required Review

Proposers should carefully review this RFP for defects and questionable or objectionable material. Comments from Proposers concerning defects and objectionable material in this RFP must be made in writing and received by the RFP contact prior to the Deadline for Submission of Questions identified in Section II or at least ten (10) calendar days before the Deadline for Proposals (whichever occurs last). This will allow issuance of any necessary amendments or addendums to the RFP. It will also help prevent the opening of a defective RFP and exposure of Proposals upon which an award could not be made. Protests based on any omission or error, or on the content of this RFP, may be disallowed if not submitted in writing to the attention of the RFP Contact prior to the Deadline for Submission of Questions identified in Section II or at least ten (10) calendar days before the Deadline for Proposals (whichever occurs last).

D. Incurred Costs

The County is not obligated to pay any costs incurred by Proposer in the preparation of a Proposal in response to this RFP. Proposers agree that all costs incurred in developing a Proposal are the Proposer's responsibility.

E. Amendments/Addendums to RFP

The County reserves the right to issue amendments or addendums to this RFP if the County considers that changes are necessary or additional information is needed.

Changes to a Proposal or withdrawal of a Proposal will only be allowed if a request is received prior to the Deadline for Proposals. No amendments or withdrawals will be accepted after the Deadline for Proposals.

F. Best Value Evaluation

As established in this RFP, the County realizes that criteria other than price are important and will award contract(s) based on the Proposal that best meets the needs of the County.

G. Right of Rejection

Offers must comply with all of the terms of the RFP, and all applicable local, state, and federal laws, codes, and regulations. The County may reject as non-responsive any Proposal that does not comply with all of the material and substantial terms, conditions, and performance requirements of the RFP. Further, the County may reject a Proposal from any entity that is a parent, affiliate, or subsidiary, or that is under common ownership, control, or management with any other entity submitting a Proposal in response to this RFP.

A Proposer may not qualify the Proposal nor restrict the rights of the County. If Proposer does so, the Proposal may be determined to be a non-responsive counter-offer and the Proposal may be rejected.

No Proposal shall be rejected, however, if it contains a minor irregularity, defect, or variation. If the irregularity, defect or variation is considered by the County to be immaterial or inconsequential, the County may choose to accept the Proposal.

Minor irregularities may be waived by the Purchasing Agent when they are any of the following:

1. Do not affect responsiveness;
2. Are merely a matter of form or format;
3. Do not change the relative standing or otherwise prejudice other offers;
4. Do not change the meaning or scope of the RFP;
5. Are trivial, negligible, or immaterial in nature;
6. Do not reflect a material change in the work; or
7. Do not constitute a substantial reservation against a requirement or provision.

In such cases the Proposer will be notified of the deficiency in the Proposal and given an opportunity to correct the irregularity, defect or variation or the County may elect to waive the deficiency and accept the Proposal. The decision to provide a waiver shall in no way modify or compromise the overall purpose of the submittal, nor excuse the Proposer from compliance with all requirements if awarded a Contract.

This RFP does not commit the County to award a contract. The County reserves the right to reject any or all Proposals if it is in the best interest of the County to do so. The County also reserves the right to terminate this RFP process at any time.

H. Local Preference

San Bernardino County has adopted a Local Preference Policy. A local preference of five percent (5%) shall be applied in the cost evaluation of proposals or bids for goods, services, equipment, or a minor public work project, unless an exemption applies. In a price-based bid, five percent (5%) will be deducted from the local vendor's proposed cost for the purpose of comparison when the local vendor's proposed cost is not the lowest. If the local vendor's bid is equal to or lower than the price of an otherwise successful non-local vendor after the 5% preference is applied, the local vendor will be given the opportunity to match the lowest quoted price. In a best value evaluation, five percent (5%) of the awardable points for cost will be added to the local vendor's score. If the local vendor's overall score is equal to or lower than that of an otherwise successful nonlocal vendor, the local vendor will be recommended for award. "Due to the evaluation of qualitative elements along with cost in a best value evaluation, application of local preference for cost proposals may not result in award to a local vendor with the lowest cost after applying local preference."

Local Vendor - A local vendor is any vendor, contractor or Contractor (hereafter "vendor") that meets all of the following requirements:

1. Vendor's main office (headquarters) or a major regional office is located within the County;
2. Vendor employs a minimum of 25% of the vendor's full-time management employees and 25% of its full-time regular employees working from San Bernardino County location(s);
3. Vendor employs one full-time or two part-time employees with primary residence in the County;
4. Vendor's "point of sale" for purposes of reporting sales tax to the State Board of Equalization is within the boundaries of the County. The payment of any local share of sales tax must go to the County or a city within the County. If the local business has more than one sales office in the State of California, the office located in the County shall be the point of sale for sales tax calculation;
5. Vendor is not delinquent in any taxes or other payments to the County;
6. Vendor possesses a valid and verifiable business license (if required);
7. Vendor has been open and established for at least six months prior to the issuance of the solicitation;
8. Vendor can demonstrate on-going business activity in the field of endeavor on which they are proposing from that office during the preceding six months;
9. Vendor has not within five years prior to the solicitation admitted guilt or been found guilty by any court or state or federal regulatory enforcement agency of violation of any criminal law or any law or regulation regarding fraud;
10. Vendor is not federally debarred; and
11. Vendor is not suspended or debarred from participation in doing business with the County, in the scope of work that is the subject of the solicitation.
12. Local Vendor Self-certification – Documentation provided

Local Vendor self-certification form is required for any bid or proposal when a local preference is claimed affirming that it meets each of the above stated criteria and signed by a vendor representative with the authority to obligate the company under penalty of perjury. (See Exhibit A)

I. Clarification of Offers

In order to determine if a Proposal is reasonably susceptible for award, communications by the Facilitator for the evaluation panel are permitted with a Proposer to clarify uncertainties or eliminate confusion concerning the contents of a Proposal. Clarifications may not result in a material or substantive change to the Proposal. The evaluation by the panel may be adjusted as a result of a clarification under this section.

J. Public Records Act

All Proposals and other material submitted become the property of the County and are subject to release according to the California Public Records Act (Government Code §7290). All Proposal information, including cost information, will be held in confidence during the evaluation and negotiation process. Thereafter, Proposals are subject to becoming a non-exempt public record.

If a Proposer believes that any portion of its Proposal is exempt from public disclosure, it must indicate the specific portions believed to be confidential and not subject to disclosure on Attachment I - Public Records Act Exemptions. The Proposer also must include a brief description that sets out the reasons for exemption from disclosure. Each stated exemption must include a citation to supporting legal authority, including statutory authority or case law, to support exemption from the Public Records Act. Requested exemptions that do not meet the requirements of this section will not be considered.

The County will use reasonable means to ensure that such information is safeguarded, but will not be held liable for inadvertent disclosure of the information. Proposals marked "Confidential" in their entirety will not be honored, and the County might not deny public disclosure of any portion of Proposals so marked.

By submitting a Proposal with portions identified in Attachment I as "Confidential," Proposer represents that it has a good faith belief that such portions are exempt from disclosure under the Public Records Act.

Proposer may be requested to obtain legal protection from disclosure should a Public Records Act request be received. In the event the County does not disclose the information marked "Confidential," Proposer agrees to reimburse the County for, and to indemnify, defend (with counsel approved by County) and hold harmless the County, its officers, employees, agents, and volunteers from and against any and all claims, damages, losses, liabilities, suits, judgments, fines, penalties, costs and expenses, including without limitation, attorneys' fees, expenses and court costs of any nature arising from or relating to the County's non-disclosure of any such designated portions of a Proposal.

K. Employment of Former County Officials

Information must be provided in Attachment G regarding former County Administrative Officials (as defined below) who are employed by or represent Proposer. The information provided must include a list of former County Administrative Officials who terminated County employment within the last five years and who are now officers, principals, partners, associates or members of Proposer and should also include the employment and/or representative capacity and the dates these individuals began employment with or representation of Proposer. For purposes of this section, "County Administrative Official" is defined as a member of the Board of Supervisors or such member's staff, Chief Executive Officer or member of such officer's staff, County department or group head, assistant department or group head, or any employee in the Exempt Group, Management Unit or Safety Management Unit.

Failure to provide this information may result in the Proposal being deemed non-responsive.

L. Iran Contracting Act of 2010

In accordance with Public Contract Code section 2204(a), the Proposer certifies that at the time the Proposal is submitted, the Proposer signing the Proposal is not identified on a list created pursuant to subdivision (b) of Public Contract Code section 2203 (<http://www.dgs.ca.gov/pd/Resources/PDLegislation.aspx>) as a person (as defined in Public Contract Code section 2202(e)) engaging in investment activities in Iran described in subdivision (a) of Public Contract Code section 2202.5, or as a person described in subdivision (b) of Public Contract Code section 2202.5, as applicable.

Proposers are cautioned that making a false certification may subject the Proposer to civil penalties, termination of an existing contract, and ineligibility to bid on a contract for a period of three (3) years in accordance with Public Contract Code section 2205. Proposer agrees that signing the Proposal shall constitute signature of this Certification.

M. Disclosure of Criminal and Civil Proceedings

The County reserves the right to request the information described herein from the Proposer selected for Contract award. Failure to provide the information may result in a disqualification from the selection process and no award of Contract to the Proposer. The County also reserves the right to obtain the requested information by way of a background check performed by an investigative firm. The selected Proposer may also be requested to provide information to clarify initial responses. Negative information provided or discovered may result in disqualification from the selection process and no award of Contract.

The selected Proposer may be asked to disclose whether the firm, or any of its partners, principals, members, associates or key employees (as that term is defined herein), within the last ten years, has been indicted on or had charges brought against it or them (if still pending) or convicted of any crime or offense arising directly or indirectly from the conduct of the firm's business, or whether the firm, or any of its partners, principals, members, associates or key employees, has within the last ten years, been indicted on or had charges brought against it or them (if still pending) or convicted of any crime or offense involving financial misconduct or fraud. If the response is affirmative, the Proposer will be asked to describe any such indictments or charges (and the status thereof), convictions and the surrounding circumstances in detail.

In addition, the selected Proposer may also be asked to disclose whether the firm, or any of its partners, principals, members, associates or key employees, within the last ten years, has been the subject of legal proceedings as defined herein arising directly from the provision of services by the firm or those individuals. "Legal proceedings" means any civil actions filed in a court of competent jurisdiction, or any matters filed by an administrative or regulatory body with jurisdiction over the firm or the individuals. If the response is affirmative, the Proposer will be asked to describe any such legal proceedings (and the status and disposition thereof) and the surrounding circumstances in detail.

For purposes of this provision "key employees" includes any individuals providing direct service to the County. "Key employees" do not include clerical personnel providing service at the firm's offices or locations.

N. Debarment and Suspension; California Secretary of State Business Entity Registration

Proposer certifies in Attachment D that neither it nor its principals or subcontractors are presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation in this transaction by any federal department or agency. (See Attachment D and the following United States General Services Administration's System for Award Management website <https://www.sam.gov>). Proposer also certifies in Attachment D that if it or any of the subcontractors listed in the Proposal are business entities that must be registered with the California Secretary of State, they are registered and in good standing with the Secretary of State.

O. Unsatisfactory Performance

Proposer affirms that it has no record of unsatisfactory performance with the County in the twenty-four (24) month period immediately preceding the date of issuance of this RFP.

P. Final Authority

The final authority to award a contract(s) as a result of this RFP rests solely with the County Board of Supervisors, or as delegated by the Board of Supervisors.

Q. RESERVED

R. Campaign Contributions Disclosure (SB 1439)

Proposer has disclosed to the County through completion of Attachment M – Campaign Contributions Disclosure (SB 1439), whether it has made any campaign contributions of more than \$250 to any member of the Board of Supervisors or other County elected officer [Sheriff, Assessor-Recorder-Clerk, District Attorney, Auditor-Controller/Treasurer/Tax Collector] after January 1, 2023. Proposer acknowledges that under Government Code section 84308, subdivision (e)(2), Proposer may not make a contribution of more than \$250 to any County elected officer while award of a contract pursuant to this Request for Proposal is pending, and for 12 months after a final decision is rendered by the County.

Campaign contributions include those made by any agent/person/entity on behalf of the Proposer or by a parent, subsidiary or otherwise related business entity of Proposer.

V. SCOPE OF WORK

A. BACKGROUND INFORMATION

San Bernardino County is geographically the largest County in the continental United States, covering 20,106 square miles. The County borders Inyo, Kern, Riverside, Los Angeles, and Orange counties as well as the states of Arizona and Nevada, with the northern portion of the County in the Mojave Desert.

B. PROJECT DESCRIPTION

The County has a need for armed and unarmed security guard services for various groups/departments at County facilities totaling approximately 730,000 hours annually. The number of guards, estimated hours and equipment required for each facility are listed on Exhibit B. The awarded Contractor(s) will be required to communicate with individual departments to determine the need for armed and unarmed security guard services including, but not limited to, hours of operation, number and type of guards required, and any other specific requests. Services shall include both regularly scheduled guard services and additional services "as required" by individual departments. Additionally, the County requires Contractors to provide armed and unarmed guard services on an on-call emergency basis and for special events.

Selected Contractors and its staff shall meet, or exceed, the following duties and requirements:

1. Contractor Responsibilities

Contractor shall:

- a. Provide armed and unarmed security guard services to the County for:
 - i. Regularly scheduled services as determined based upon the needs of each department; and
 - ii. Additional services when requested by the department, on an on-call basis, and for special events upon request.
- b. Meet with assigned County Department Liaisons to determine the service needs of the individual department including, but not limited to, the number of personnel to be assigned to a location, equipment to be utilized, and the hours and days of services.
- c. Work closely with assigned County Department Liaisons to ensure that security services provided are as required and agreed upon.
- d. Possess and maintain all appropriate permits and licenses necessary in the performance of services required under the agreement. Contractor shall ensure all required registrations, licenses, and/or permits required of its employees remain current. Contractor will provide copies of licenses upon request.
- e. Fulfill the standard contract requirements, including indemnification and insurance, as required by the County.
- f. Provide direct supervision of guards at all locations daily by shift.
- g. Ensure that staff conform to all laws, regulations, and standards applicable to providing the services required herein.
- h. Prepare and provide a thorough guard manual to all staff assigned to County facilities that covers all the services to be provided to the County. Contractor shall ensure that all staff are trained on the contents of the manual at the time of hire and at regular intervals thereafter. The guard manual shall be provided to the County upon request.
- i. Maintain a pool of guards who have been trained to work at County facilities and who are approved by the County to serve as replacement guards.
- j. Operate a central dispatch center 24 hours per day, seven (7) days per week, where a dispatcher is assigned to dispatch guards for call offs or emergencies; and monitors Contractor's systems which track security guards' arrivals and departures, tours of duty, etc.
- k. Keep the County informed on new techniques and practices in the security guard service industry.
- l. Not employ any person that is a current County employee.
- m. Provide emergency guard backup replacement within 1 hour; supervisors/account managers, operations managers and branch managers are to be present immediately until the backup arrives. Under no circumstances shall a guard be removed from another location to cover for a site. All backup emergencies shall be from the Contractor's pool list.

- n. Contractor shall increase their security guard pool list during extreme summer heat and cold seasons.
- o. Be familiar with all County facilities at which services are being provided. Assigned staff shall be knowledgeable about the facility to which they are assigned.
- p. In the event of an “emergency situation”, Contractor shall continue to provide services under the Contract. An “emergency situation” includes, but is not limited to, fire, flood, earthquake, civil disturbance, and other natural or manmade disasters. County Management shall determine the extent to which services shall be provided. Contractor shall provide adequate staffing to ensure contained services to the extent determined by County.

2. Report/Records Requirement

Contractor shall:

- a. Have the administrative and fiscal capability to provide and manage the proposed services and to ensure an adequate audit trail; maintain adequate files and records and meet statistical reporting requirements.
- b. Provide post orders for all locations and sites in a professional format approved by the County. Reports shall be updated on a quarterly basis and provided to the County in Microsoft Word format.
- c. Use the County’s Automated Incident Report System and approve all reports within 24 hours.

Criteria	Target Metric
Response Time - New Service	
1. Percentage of department requests for new service, acknowledged* within 48 hours. Contractor shall provide quarterly electronic reports that support the following calculation: (Calculation = number of requests, by department/service location, acknowledged within 48 hours divided by number of total requests, by department, for new service)	95%
2. Percentage of Countywide requests for new service, acknowledged* within 48 hours. Contractor shall provide quarterly electronic reports that support the following calculation: (Calculation= Total number of Countywide requests acknowledged within 48 hours divided by the total number of Countywide requests for new service)	95%
Fill Rate - New Service	
3. Percentage of department requests for new service, successfully filled on time. Contractor shall provide quarterly electronic reports that support the following calculation: (Calculation= number of requests by department/service location, filled on time divided by the number of total requests, by department, for new service)	98%
4. Percentage of Countywide requests for new service, successfully filled on time. Contractor shall provide quarterly electronic reports that support the following calculation: (Calculation = Total number of Countywide requests filled on time divided by the total number of Countywide requests for new services)	98%
Site Visits	

5. Percentage of Countywide supervisor visits at each site with a minimum of one visit per shift. Contractor shall provide quarterly electronic reports that support the following calculation: (Calculation = number of Countywide sites shifts actually visited daily divided by the total number of Countywide sites visits required)	98%
6. Percentage of Countywide guard concerns and post orders that are not followed per shift. Contractor shall provide quarterly electronic reports that support the following calculation: (Calculation = number of Countywide sites shifts actually supported daily divided by the total number of guard concerns and/or post orders not followed per shift by site visits required)	98%

*Acknowledgement shall be by email to the requesting department, confirming that the request has been reviewed, accepted and is in-process.

Note: Contractor will provide quarterly reports to the County with the above metrics.

If the target metric Response Time by department (Criteria No. 1), or Fill Rate by department (Criteria No. 3), falls outside the stated parameter in any quarter, then the Contractor shall have a 30 day "probationary" period to bring the metric within the acceptable percentage. This measurement shall only encompass the 30-day probationary period. If no new service is requested during the probationary period, the Contractor is considered 100% compliant, as no violations have occurred.

If the Contractor fails to meet the target metric by the end of the 30 day probationary period, the affected County department(s) will be eligible for a credit equal to 1% for every percentage point that is outside the stated percentage of the metric (for example, if the stated metric is 95%, and the achieved metric is 92%, that invoice is eligible for a 3% credit). This credit will only apply to the invoice(s) associated with the specific Request for Guard Services (RGS) document that fall outside the stated metric and originated during the original reporting period.

If more than one criterion falls outside the stated metric percentage, the criterion with the largest percentage deficit shall be used to calculate the credit to be applied to the invoice. Credits are not cumulative and shall be capped at a maximum of three percent (3%) per reporting period. Countywide metric percentages and site visit percentages are not eligible for credits.

At a minimum, the reports shall list the criteria, the target metric percentages associated with them (refer to the table above), and the achieved percentage. The report contents and information must be presented in a way that can be verified by the County. The county must agree to the format of the reports and, may request during the term of the Contract that the report format be changed or revised. Clarity, presentation, and quality are the important aspects of these reports.

Contractor is granted a 60-day period from the start of this contract to make transition adjustments before any penalties may be assessed.

3. **Supervision Requirements**

Contractor shall be responsible for the direct supervision of guards. Such supervision shall ensure that each guard conforms to the specifications described herein. Supervision shall include, but is not limited to, ensuring staffing levels are met; security guards arrive on time and prepared to work; observing security guards' work habits, appearance, and overall performance; and verifying applicable patrol. Including review of established Post Orders on-site between Guard(s) and visiting Supervisor.

- a. Contractor shall require a supervisor to visit each site, at minimum, once per shift to observe each guard while on duty. During normal operating business hours, supervisors shall check in with the County's on-site contact at least one time.
- b. Supervisors are responsible to log in, verify site timesheets, inspect guard uniforms, maintain responsibility over security guards, and correct invoices so as not delay to payments. Including regular review of assigned Post Orders with security guards.
- c. Supervisor ratio shall be 1:20 per site; the cost of supervisors shall be included in the Contractors overhead rates unless otherwise specified.

4. **Equipment and Supplies**

Contractor shall furnish and maintain in good order, condition, and repair the following at no additional cost to the County:

- a. All equipment including, but not limited to handheld radios, cell phones, uniforms, badges, mace, batons, record keeping logs, manuals, and supplies (including forms, guard logbook, etc.). County supplied equipment to include security scanning wands, control of county provided storage lockers (keys), rain gear, etc.
- b. Provide a complete automated Guard Tour Patrol System that can be utilized Countywide. The system shall include all equipment, be capable of providing daily log records electronically and enable County Administrators to retrieve all data and/or information, when needed. A Guard Tour Patrol System must log the rounds of guards assigned pursuant to the Contract and include all assigned locations and tours. Reporting must be provided daily, and raw data must be provided to the County in a "CSV" Comma Separated Values format as specified by the County. The Guard Tour Patrol System must have the capability to document site visits by supervisors and automatically email the site visit report to the County.
- c. Provide software package and devices (cellphones) for all County sites to log in and track guard check in. This may be included within the Guard Tour Patrol System if reporting capabilities are available.
- d. Provide a comprehensive Inventory Report every six (6) months of all equipment and patrol vehicles billed to the County, per site, pursuant to the Contract.
- e. Provide equipment replacement and/or loaner within 24-hours. If equipment replacements and/or loaners are unavailable, Contractor shall, on the next issued invoice, hour credit the County for the days the equipment is not supplied at a site location. At no time shall equipment be loaned from one site to another site to provide coverage.
- f. Contractor-owned equipment, and related accessories which are used by security guards and their supervisors to provide services under the Contract, shall be kept clean and maintained according to manufacturer standards. The County reserves the right to inspect such items to ensure they are in proper working order and meet County requirements as described herein.
- g. Contractor shall be responsible for County owned equipment in the event, that items are lost, stolen, or damaged.
- h. All armed security guard equipment, uniforms, and accessories shall be provided by the Contractor.
- i. Contractor shall utilize an electronic check-in/check-out system, in addition to hard copy sign in/sign-out sheets, for security guard(s) and security guard supervisor(s) assigned to work at all locations. The electronic system shall be able to generate a

report that shows check in/out times and hours worked. The report shall be used to generate monthly invoices to be submitted to the County along with the hard copy sign-in/sign-out sheets. Contractor shall provide and maintain such electronic system at no cost to County.

- j. Personal Electronic Devices – Except in emergency situations, usage of personnel electronic devices, i.e., cell phones, smart phones, iPads, tablets, small T. V's, by guards or supervisors while on duty is prohibited.

The items listed above shall be included as a portion of the total bill rate indicated in the Attachment E - Fee Proposal Cost Sheet. Contractor shall not bill the County separately for these items.

5. **Patrol Vehicles**

Contractor shall provide all patrol vehicles, including bicycles, electric and/or gas carts, or full-size vehicles for use by Contractor's staff. Contractor shall provide 24-hour turnaround time for replacement or loan of all vehicles. If vehicle replacements and/or loaners are unavailable, Contractor shall, on the next issued invoice, credit the County for the days the vehicles are not supplied at a site location. At no time shall vehicles be loaned from one site to another site to provide coverage. Contractor shall be responsible for providing staff training, licensing, insurance, maintenance and depreciation for each vehicle utilized during the course of the Contract.

6. **County Contact**

Contractor shall keep the Sheriff/Coroner/Public Administrator's (Sheriff) Office of County Safety and Security informed as to the name and phone number of the security guard and security guard supervisor assigned to each County location.

C. CONTRACTOR QUALIFICATION

As part of the Proposal, Proposers must submit the following documents and information for review, and be able to comply with the requirements listed below:

1. Designation of Portfolio Manager(s) to act as the Contractor's primary point of contact during the course of the Contract. Proposer must submit the resume of the Portfolio Manager(s) who will be handling the County's account.
2. Portfolio and Account manager(s) must be a current member of (ASIS) International.
3. Supervisors or management holding certifications as a Physical Security Professional (PSP) and/or Certified Protection Professional (CPP) from ASIS International is highly desirable.
4. Supervisors or management holding the professional designation of CPD in Crime Prevention Through Environmental Design (CPTED) from the National Institute of Crime Prevention is highly desirable.
5. A sample of the application, written tests, and evaluations used for hiring new employees; sample timecard; and sample invoice.
6. Description of the current security screening procedures, e.g., background check, for all employees.
7. Explain and provide documentation on the procedures used for personnel issues such as sexual harassment, discrimination, workplace violence, and Covid-19 compliance.

8. Provide an explanation as to how recruitments are conducted for new vacancies and in remote geographic areas.
9. For Proposers who are not the County's current Contractor, provide a plan of action detailing the transition from the current Contractor to Proposer, for minimum service disruption to the County.
10. Provide a statement of experience for the issuance of parking citations.

D. CONTRACTOR GUARANTEE

The Contractor guarantees guard service will be satisfactory to the County, as required in the Contract. If the County is dissatisfied with Contractor's services, the County has the right to terminate the Contract and be relieved of the obligation of continuing with the Contract. The following provisions shall apply to each contract awarded pursuant to this RFP:

1. The following performance-based requirements shall apply to all guards, supervisors, and Account Managers:
 - a. Zero-tolerance policy of violence toward employees and the public, damage to property, sleeping on the job, use of personal electronic devices and use of drugs, alcoholic substance including control narcotics while on duty. In the event a guard, supervisor or Account Manager engages in any of this activity, they shall be immediately removed from providing services under the Contract.
 - b. For conduct that does not fall within the zero tolerance provisions above, including general inappropriate behavior and comments, if two instances of disciplinary action are taken against a guard, supervisor or Account Manager, the guard, supervisor, or Account Manager subject to the disciplinary action shall be removed from performing services under the Contract. No fraternization or harassment against County staff or the public is allowed.
 - c. Any guard or supervisor that has not reported for duty at their assigned site after 3 (three) consecutive occasions, without a prior excused reason, shall not be permitted to provide services under the Contract.

E. QUALITY CONTROL

1. Quality Control Plan - Contractor shall establish and maintain a comprehensive Quality Control Plan to assure the County a consistently high level of service throughout the term of the Contract that meets or exceeds all requirements. In the event, that requirements and/or policies and procedures change during the term of the Contract, Contractor shall update the Quality Control Plan and submit such updated plan to County Management. The Quality Control Plan shall include, but is not limited to, the following:
 - a. Method of monitoring all tasks and services to ensure that Contract requirements are being met. The monitoring system must specify methods for identifying and preventing deficiencies in the quality of services performed before the level of performance becomes unacceptable; and
 - b. Specific activities to be monitored either on scheduled or unscheduled basis; and
 - c. Methods of monitoring to include methods of verifying authenticity of reports and methods to ensure quality of services; and
 - d. Frequency of monitoring; and
 - e. Samples of forms to be used in monitoring; and
 - f. Job title and level of personnel performing monitoring functions (Contractor shall ensure that Contractor Account Manager and/or quality control personnel, and not the security

guards, are performing the security quality control services and implementing the Quality Control Plan); and

- g. Plan for ensuring that services will continue in the event of a natural or manmade disaster or strike of security guards and/or security guard supervisors.
2. Policies and Procedures - Contractor shall maintain and update, as necessary, written policies and procedures regarding the licensing, certification, training files, and work requirements for Contractor personnel assigned to provide armed and unarmed security guard services under the Contract. The policies and procedures shall be provided to County immediately upon request.
3. Performance Evaluation Meetings - County and Contractor shall meet, at minimum, quarterly to discuss status of the Contract, new or on-going problems, and other issues. County management reserves the right to schedule additional, or more frequent, meetings if Contractor's quality of performance is not at a level deemed acceptable by the County.

F. HOURS AND DAYS OF OPERATION

Contractor hours of operation will vary by location. The estimated total hours and required guards are set forth on Exhibit B. The location list is subject to change upon the specified needs of each department. Contractor personnel may be required to provide services on County-recognized holidays, and based upon location, may be required to be available 24 hours per day, seven days per week, and 365 days per year (366 days per leap year).

1. Work Schedules/Deployment - Contractor shall have discretion over the deployment, and shifts, of security guards and security guard supervisors as long as service levels are met. Contractor shall maintain a continuously updated deployment roster which shall be submitted to the County upon request, and during the quarterly performance evaluation meeting. In the event that the County requires additional service hours, service days due to temporary changes in workload, or other urgent needs of specific location or County Department, Contractor's Account Manager shall work with County Purchasing to develop a plan to meet the new requirements.
2. Unmanned Post - Contractor shall provide sufficient security guards and security guard supervisors to ensure there are no unmanned posts at any time, including relief for breaks and meal periods where necessary.
 - a. Posts are to be filled according to the County's staffing plan requirements, as set forth in Exhibit B, unless provided express written consent by County of an exception, modification, or change.
 - b. County shall view any unmanned post as a serious breach of Contract performance. More than three (3) instances of an unmanned post in a singular location within a thirty (30) calendar day period, or three (3) consecutive days of a singular unmanned post, may subject Contractor to possible forfeiture of the post and termination of the Contract.
 - c. Security guards and security guard supervisors shall be responsible for reporting absences to Contractor. Contractor shall report to County management the day before a planned absence or within one (1) hour of a security guard or security guard supervisor work reporting time for unplanned absences. Upon reporting unplanned absences, Contractor shall deploy a replacement security guard or security guard supervisor (billed at security guard rate if replacing a security guard) to the location immediately to ensure post coverage at all times. If a security guard supervisor, manager or director is deployed for a security guard, they shall stand post until a replacement

security guard arrives. The replacement security guard or security guard supervisor shall report between thirty (30) minutes and no longer than one (1) hour from unplanned absence notification.

- d. In the event that a security guard or security guard supervisor must leave during the workday, Contractor shall send a replacement security guard or security guard supervisor between thirty (30) minutes and no longer than one (1) hour of the security guard or security guard supervisor's absence, with the replacement security guard or security guard supervisor completing the remaining work schedule. In the event that a security guard supervisor replaces a security guard, Contractor shall bill the County at the security guard rate. The between thirty (30) minutes to one (1) hour replacement requirement is a baseline; Contractor shall make every effort to have a replacement on location immediately upon notice of an unmanned post.

G. SECURITY GUARD AND SECURITY GUARD SUPERVISOR OVERTIME

Contractor shall comply with all applicable provisions of the Federal Fair Labor Standards Act regarding payment of overtime.

1. Contractor shall pay security guards and security guard supervisors (other than those with an alternate work schedule) who have worked in excess of eight (8) hours per day, at the compensation rate of one and a half (1.5) times their hourly labor rate for such work in excess of eight (8) hours per calendar day, or as required by law. Payment for any unspecified overtime shall be the Contractor's responsibility.
2. County will not pay overtime for any security guard or security guard supervisor who has worked a full shift at another post and is brought in to cover a County assignment, such as when a security guard has called in sick or to cover an unmanned post.

H. HOLIDAYS

When twenty-four (24) hour/seven (7) days per week coverage is required at specified locations, Contractor may be required to provide services on County recognized holidays.

1. Contractor will be paid by County at a holiday rate equivalent to the overtime rate of one and a half (1.5) times the hourly labor rate for security guard and security guard supervisor hours required on dates that are recognized by both County and Contractor as holidays, provided the Contractor pays the overtime rate of one and a half (1.5) times the hourly labor rate to security guards and security guard supervisors.
2. Holiday dates shall vary from year to year.

I. PAY DIFFERENTIAL

When a security guard is asked to work at a County location that is a non-twenty-four (24) hour/seven (7) days per week due to unforeseen circumstances. County will pay the following hourly rates as listed in Attachment E - Fee Proposal Cost Sheet.

1. Graveyard shift is defined as a security guard who works an overnight shift from the hours of 11:00 pm to 8:00 am and will be paid at a fixed hourly rate.
2. Swing shift is defined as a security guard who works a shift during the hours of 5:00 pm to 11:00 pm and will be paid at a fixed hourly rate.

J. GUARD QUALIFICATION

Each security guard must meet the following minimum standards to qualify:

1. General Criteria - Must be at least 18 years of age for unarmed security and 21 years of age for armed security, with provisions that the candidates must be able to perform the duties required for the position.
2. Citizenship - Must be a citizen of the United States of America or a legal alien in the United States of America.
3. Employment Verification - Must be able to provide references in writing from previous employers substantiating the individual's good character, upon request.
4. Physical Fitness - Must be able to perform, without limitation, the individual's assigned duties.
5. Experience - Must have previous experience or training preparation to perform the job competently and adequately.
6. Registration/Licenses and Certifications - Copies of any certification/completion documents shall be furnished to the County upon request (e.g., CPR, First Aid Cards, etc.).
7. Valid California Driver's License or ID Card - Must continuously maintain a valid driver's license, i.e., be licensed by the State of California to operate a motor vehicle or a valid California ID card (if not driving). Contractor shall monitor security guards safe driving record and may be asked by the County to provide reports upon request.
8. Education - Must be a high school graduate or equivalent and be able to read and write English satisfactorily, understand and carry out oral and written instructions, write accurate and clear reports, and monitor environmental and electronic security systems.
9. Health screening - Must provide Tuberculosis testing, Hepatitis B vaccinations, and health exams for all positions at Arrowhead Regional Medical Center and any other County facilities when required by law.
10. Drug Screening - Must have successfully passed a drug screen examination within six (6) months prior to assignment with the County. The screen must have the ability to detect the use of marijuana, cocaine, heroin, amphetamines, opiates, and benzodiazepines. The County has the right to inspect drug examination results.
11. Criminal History - Must not have been convicted of, pled guilty to, or nolo contendere to a felony or job-related crime for a minimum seven-year period immediately preceding the candidate's date of hire.
 - a. Security guards assigned to San Bernardino County District Attorney's Office (DA), Probation Department (Probation), and Sheriff facilities shall not have been convicted of, pled guilty to, or nolo contendere to a felony or job-related crime in their lifetime; are not proven substance abusers, and do not use legal or illegal substances in any manner which will impact performing the Services under applicable law.
12. Bondable - Must be eligible for a bond.
13. Valid Security Guard License - Must be registered with the California Department of Consumer Affairs (DCA) and California Bureau of Security and Investigative Services as a security guard. Must carry, at all times, the permanent guard registration card issued by the DCA. Temporary guard cards are not acceptable.

14. License of Firearm: Must maintain a valid license to carry a firearm if providing armed guard services.

K. DUTY AND SERVICE OF SECURITY GUARD

Guards shall provide, but not limited to, the basic duties and services described below:

1. Observe, report, and assist with de-escalation of incidents at all County location sites.
2. Each guard shall conduct him/herself in such a manner as to promote and maintain good public relations.
3. Create and keep accurate and complete written reports and supporting documentation of all unusual and/or important instances and happenings as soon as possible after they occur. (All unusual incident reports will need to be submitted via the County's Automated Incident Report System)
4. Always be alert and continuously operate an effectively organized, and efficiently managed, guard service system.
5. Anticipate criminal acts and take remedial action from discernment of person's conduct. Keep all persons under surveillance:
 - a. Recognize, know, and identify regular County employees.
 - b. Recognize, know, and identify persons from the government and private sectors who repeatedly visit said premises.
 - c. Be mindful of all other persons while they are on said premises.
6. Furnish and maintain accurate written records for the County as provided for herein and as provided in guard manuals.
7. Perform all duties by competent, skilled guards, under capable supervision.
8. Know and abide by all laws pertaining to the herein set forth duties.
9. Meet confrontations; de-escalate commotion and disturbances with firm politeness.
10. Courteously direct and assist the public and others with information and guidance.
11. Notify law enforcement, and assist in the apprehension, of lawbreakers.
12. Except for due politeness, abstain from engaging in any personal familiarities.
13. Assist with performing first aid when needed.
14. Assist with traffic control and issue parking citations as directed by the County.
15. Thoroughly investigate criminal acts coming to the attention of the Contractor and their staff, immediately report the acts to the proper authority, and record the acts in writing in complete detail using the County's Automated Incident Report System within 24 hours of the incident.
16. Be guided by, comply with, and perform security guard services and duties in accordance with company policies, provided by Contractor.

17. Safeguard any entrusted information, including details about barred individuals, post orders, security protocols, etc., ensuring strict confidentiality. Take appropriate action based on the information provided.
18. Report to the proper County authority any disclosure of information concerning an incident, act or threat which is in any way made known to a guard.
19. Investigate, pursue, and diligently endeavor to establish definite identification of persons on County premises who commit personal injury, theft, arson, sabotage, vandalism, malicious mischief, defacement, or any other illegal act.
20. Comply with all County policies and applicable laws relating to sexual harassment, workplace violence, and non-discrimination.

L. TRAINING REQUIREMENTS

Effective security requires security guards to be familiar with all aspects of a facility's security system for assessing and containing potential threats. Security guards are required to be well versed in all levels of emergency procedures and to ensure that emergency procedures can be implemented successfully. Therefore, security guards must be thoroughly screened and trained. All training courses need to meet ASIS International Guidelines. Security guards must pass all necessary training for the level hired or they shall not work until training is completed. A training certificate for each level guard must be provided to the site manager at the date of hire. Training shall include, but is not limited to, the following:

1. Level 1 Guard (Trainings include, but are not limited to)

Nature and Role of Private Security Officers

- a. Security Awareness
- b. Legal Aspects of Private Security
- c. Security Officer Conduct
 - i. Observation and Incident Reporting
 - ii. Principles of Communications
 - iii. Principles of Access Control
 - iv. Principles of Safeguarding Information
 - v. Crowd Control
 - vi. Traffic Control and Parking Lot Security
 - vii. Basic Computer Skills

2. Level 2 Guard (Requires the completion of Level 1 Guard Training)

- a. Crisis Management
- b. General Defensive Training
- c. Emergency Response Procedures
- d. Training in Incident Command System (ICS), National Incident Management System (NIMS), and the National Response Framework (NRF)
- e. Critical Incident Response (e.g., natural disasters, accidents, human caused events)
- f. Evacuation Processes
- g. Disaster Preparedness
- h. Life Safety Awareness
 - i. Safety Hazards in the Workplace/Surroundings
 - ii. Emergency Equipment Placement
 - iii. Fire Prevention Skills
 - iv. Hazardous Materials and Right-To-Know law

- v. Occupational Safety and Health Requirement
 - a. Workplace Violence
 - b. Procedures for First Aid, Cardiopulmonary Resuscitation (CPR), and Automated External Defibrillators (AEDs).

3. Armed Officers (Requires the completion of Level 1 and Level 2 Guard Training)

- a. Firearms Training (if applicable)
 - i. Pre-Assignment Training
 - ii. Post-Assignment Training
 - iii. Annual Training

Note: Provide us any additional skills tests that your company performs. Please include a list and detailed description of your company's pre-employment screening (e.g., Skilled test, personality test) with the proposal.

4. Lobby Ambassador

The Lobby Ambassador plays a key role in the day-to-day operation and hospitality of the "Super Block" buildings and helps to ensure a positive guest and employee experience. The County Superblock is defined as follows: West border is Arrowhead Avenue, North border is Fifth Street, East border is Sierra Way and South border is Third Street in the City of San Bernardino. Within the Superblock there are ten (10) County buildings and eight (8) parking lots.

This is a highly visible position that suits outgoing and personable individuals who enjoy interacting with people on a day-to-day basis and providing engaging, sincere, personalized service that provides a welcoming first experience at all County Government Center buildings. Lobby Ambassadors shall:

- a. Be professional, friendly, and energetic personnel who greet all who visit and work there. Handling phone calls, supervisory skills, and administrative duties shall also be a part of this role.
- b. Possess the ability to function socially; interact and communicate with guests and employees; not be afraid to engage; clearly communicate and be understood; have a personality that is welcoming, polite, helpful, and be willing to assist guests and employees whenever possible within reason; and the ability to show empathy when a guest or employee are experiencing difficulties, demonstrating care and a willingness to help.
- c. Possess an inherent desire to create a world-class customer experience, be agile, aware, and able to quickly transition to assist in the face of an emergency.
- d. Provide hospitality and security; take ownership of the lobby by greeting and assisting all guests and employees and monitor safety and security concerns to provide a welcoming environment.
- e. Implement established security policies and procedures regarding arriving and departing guests, employees, contractors, delivery persons, etc.
- f. Communicate clearly, concisely, and courteously with clients, guests, and employees.
- g. Meet and exceed exceptional grooming standards.
- h. Possess exceptional verbal and written communication skills and excellent customer service skills with a 'can-do' attitude.
- i. Possess the ability to work effectively as an individual and within a team environment.

- j. Remain calm, cool, collected, and in control at all times, especially in the event of major security related issues and emergencies.
- k. The Lobby Ambassador shall be responsible for the following:
 - i. Providing security services at assigned locations; and
 - ii. Foot patrol of interior and exterior areas of assigned locations; and
 - iii. Reporting suspicious activities and persons, writing detailed narrative reports, maintaining daily activity reports (DARs), enforcing rules, regulations, policies, procedures, and responding to emergency situations requiring security assistance; and
 - iv. Accessing control through an admittance process; and
 - v. Assisting visitors gain entry to the facility when required; and
 - vi. Screening visitors and client employees in an effective manner to expedite their admittance to the site or facility; and
 - vii. Checking for unsafe conditions, hazards, unlocked doors, security violations, blocked ingress and egress, mechanical problems, and unauthorized persons; and
 - viii. Inspecting buildings and grounds using appropriate assigned equipment; and
 - ix. Use of an exterior patrol tracking system that requires the patrolling Guard to physically/electronically check in to verify patrol.
 - x. Operating and monitoring video surveillance systems; and
 - xi. Utilizing and implementing the Front Desk Procedures Manual including the Shift Inventory Log and Pass-On Log; and
 - xii. Periodically and regularly observing building activity as captured by surveillance cameras and displayed on security monitors; reporting suspicious or abnormal activities to Action Staff, management, building security, or law enforcement, as appropriate; preparing detailed documentation of incidents according to established procedures.
- l. Additional Lobby Ambassador Requirements:
 - i. Attire shall include navy sports coat, powder long blue sleeve dress shirt, black dress slacks, black shoes.
 - ii. A tie may be required to be worn on days when Board of Supervisor's meetings are held, or other high-profile days.
 - iii. Armed with a firearm and hold a BSIS Guard Card, Firearms Permit, First Aid, CPR and AED Certificates.
 - iv. Live Scan security clearance is required prior to employment.
 - v. Shall have the required training of all levels of security officers listed above (Level 1, Level 2, and Level 3).
 - vi. Shall possess 3-5 years of Lobby Ambassador or public contact experience.
 - vii. Shall coordinate security for Government Center Super Block.
 - viii. Shall coordinate with County staff on special events and meetings.
 - ix. Three (3) Lobby Ambassadors are required (backup may be the armed desk guard)
 - x. Act as a security lead at the Government Center in the absence of a supervisor.

M. UNIFORM REQUIREMENTS

At all-times, guards shall wear Contractor's complete uniform which has been approved by the appropriate local law enforcement agency and approved by the County. All uniform markings, patches, and colors shall be distinctive from uniforms worn by local law enforcement personnel. All uniforms shall have high visibility and be bright in color.

1. All uniforms and equipment shall be provided to guards without direct expense to the County or expense to the individual guard.
2. Guards may wear company hats only when outdoors; badges, company designation patches and name tags shall be worn at all times.
3. Guards shall keep their uniforms in good condition, free from tears, cleaned, and pressed.
4. The uniform shall be tailored to properly fit the security guard.
5. Jackets, windbreakers, or sweaters are allowed, provided the outermost garment contains the Contractor's identification and the colors are consistent with the uniforms.
6. Skirts are not permitted.
7. Footwear shall be black closed-toed shoes or boots.
8. Leather gear, shoes, and metal equipment shall be clean and polished.
9. All assigned equipment shall be furnished by the guard while on duty.

Note: Please provide photos of all uniforms available in Attachment E, Fee Proposal Price Cost.

N. SCREENING

The County reserves the right to bar from assignment, by written or verbal notice to the Contractor, any and all guards it deems unfit for duty or as deemed in the best interest of the County.

O. FIREARMS

1. Armed guards shall carry firearms in the performance of their duties at all facilities requiring armed guard services. Non-lethal weapons must be approved by County prior to deployment.
2. Unarmed guards shall be without firearms in the performance of their duties at all facilities requiring unarmed guard services.

P. SECURITY MEASURES

1. Security

The Contractor is advised that failure to fully comply with the security requirements of the Contract shall result in the termination of the Contract for default.

- a. County shall have the sole discretion to determine security acceptability of all Contractor's personnel at any time during the Contract period. Note: Children are not allowed to accompany any guard or supervisor who has been cleared to enter facilities.
- b. Acceptability shall be determined by:
 1. Background investigation
 2. The County's previous experience with the individual (if applicable).

- 3. Performance in providing services under the contract.
- c. Only those individuals who have been determined acceptable, possess a current guard card, have received their Contractor-issued Identification (ID) cards, and who have been designated by the Contractor, shall be allowed to provide services under the Contract.
- d. The misuse of any Contractor issued ID cards, Access Control Card, keys, or alarm codes by the Contractor, or any Contractor employees, shall be considered a failure to fully comply with the security requirements of the Contract and shall be considered grounds for termination of the Contract.
- e. County may request at any time the removal of any Contractor employees if it is in the best interest of the County to do so. Any such request will result in immediate removal of the employees.

2. Background Investigation

- a. At Contractor's sole expense, all personnel performing work on behalf of the Contractor under the Contract shall undergo and pass, to the satisfaction of the County, a thorough background investigation as a condition of providing services and prior to being authorized access to any County facility. Background investigations shall include, but are not limited to, criminal conviction information obtained through fingerprints submitted to the California Department of Justice and the Federal Bureau of Investigation, Live Scan, driving records, background questionnaire, and photographs. The Contractor shall only be notified of the final security determination of its personnel. Specific details shall remain confidential and will not be provided to the Contractor or subcontractor(s).
- b. Contractor shall request the following documents from each person requiring a background investigation:
 - i. A clean, legible copy of a Social Security Card or Social Security Administration abstract; and
 - ii. A clean, legible copy of a Driver's License, or State-issued Identification Card; and
 - iii. Either a Resident Alien Card and/or documentation with a valid form of picture identification indicating that proposed guard is authorized to be lawfully employed in the United States, for employees who are not citizens of the United States.
- c. In the case of selected departments including, but not limited to, the District Attorney (DA), Sheriff, Probation, and the Department of Behavioral Health, an independent background shall be completed by the department at the Contractor's sole expense.
- d. Sheriff – Contractor's personnel must complete Live Scan fingerprinting services at Sheriff's Headquarters located at 655 East Third Street, San Bernardino, California, 92415. Upon Contractor's personnel, subcontractors, or agents failing a background investigation, Sheriff will request that the individual be removed from performing work at Sheriff facilities at any time during the Contract.
- e. Children and Family Services (CFS) - Requires CACI background check criteria elements be inclusive in any background check.
- f. Upon request, the Sheriff's Office of County Safety and Security and/or DA shall be provided with the results of the background investigation prior to any employee of Contractor being authorized access to County facilities.

3. Keys for County Facilities

- a. Keys and access cards to County facilities are to be used for the sole purpose of providing Contractor's staff access to the facilities for the performance of contracted services only.
- b. Contractor shall be issued a set of keys and/or access cards and shall assume all responsibilities for the use and return of the keys and access cards.
- c. All keys and access cards issued to the Contractor shall remain the property of the County and shall be returned upon demand or at the termination/expiration of the contract. The Contractor shall be assessed one hundred dollars (\$100.00 USD) for each key and access card not returned and may be further assessed the actual cost to re-key the facility key system(s).
- d. If any keys or access cards are lost or stolen, the Contractor shall notify the building site contacts and the Sheriff's Office of County Safety and Security via phone or email within 24 hours of the loss, identifying the facility for which the keys or access cards were lost and submit a report via the County's Automated Incident Report System detailing who lost the keys, where they were lost, date and time loss was discovered, and what actions the Contractor has taken to prevent future losses. The Contractor is advised that the loss of some specialized keys may entail the re-keying of several facilities or facility at the Contractor's sole expense.
- e. Unauthorized duplication of keys to County facilities is a misdemeanor under Chapter 3, CA Penal Code § 469 (2019) CA Penal Code § 469 (2019)

4. Alarm Systems

- a. The County has alarm systems in numerous facilities. In some instances, there are multiple systems within a facility. The Contractor shall be issued alarm codes for each site and be instructed in the correct operation of the system. It is imperative that the individual operating the alarm system be fluent in English. In the event of a life-threatening emergency the Contractor shall instruct staff to use the Standard Operating Procedures for emergency response -- CALL 911.
- b. False Alarms: Failure to operate the alarm system correctly may result in a false alarm. The Contractor shall be responsible for all costs associated with false alarms.

Q. PRICE GUARANTEE ESCALATION

All prices will be considered firm for the entire period of the contract. No price increases for any reason shall be granted unless approved by the board.

R. BILLING

In addition to the provisions specified in Section X.41 – Fiscal Provisions, Contractor shall invoice the County based on the following requirements:

Each invoice shall have attached consolidated certified time sheet(s) or invoice summary sheet(s) showing exact amounts of daily times each security guard worked. Consolidated certified time sheet(s) or invoice summary sheet(s) shall include, but not be limited to, the following:

- a. Prices for services and/or equipment showing unit cost and extended cost; and
- b. Total quantity of hours worked for guard service by service location and/or total quantity of equipment utilized; and
- c. Employee hours, start time, and end time; and

- d. Employee name and identification.

Contractor invoice(s) shall include, but not be limited to, the following:

- a. Contractor name and address; and
- b. Invoice number and date; and
- c. Payment terms; and
- d. Start and end dates of billing cycle; and
- e. Facility (location) name and address as described in the Request Guard Services (RGS) document (this information indicates where the service was provided); and
- f. Unit price for services and/or equipment listed and totaled; and
- g. Total quantity of hours worked for guard service and/or total quantity of equipment utilized.
 - i. Request Guard Services (RGS) document Number - Each invoice shall indicate a corresponding full RGS number. Invoices without the full RGS number will be considered invalid and incomplete. Such invoices shall be returned to the Contractor for correction.
 - ii. Invoice Description - Contractor's invoice line-item description shall match the RGS line-item description exactly. Invoices that do not match the description of the RGS will be considered invalid and incomplete. Such invoices shall be returned to the Contractor for correction.
 - iii. Facility (Location) Name and Address – Facility name and address shall be included on each invoice and shall exactly match the facility and address of the corresponding RGS document.
 - iv. Invoice Billing Cycle - Invoice billing cycle shall start the first day of the month and end the last day of the month.
 - v. Invoice Delivery Time - Invoices must be electronically delivered to the County within fifteen (15) calendar days from end of the previous month's billing cycle.
 - vi. Disputed Invoices - When the County makes a request via email for an invoice correction, the request shall be sent to the Portfolio Manager. The Contractor shall provide acknowledgment via email within forty-eight (48) hours of the email request that they have received the email request of the invoice dispute from the County. Invoice correction(s) shall be made within seven (7) calendar days of the email request by the County.
 - vii. Outstanding Invoices - Any invoice that is submitted to the County that is ninety (90) or more calendar days after the end of the billing cycle shall be considered permanently "written off" by Contractor (zero balance due to Contractor). County shall not be obligated to pay any invoices that are submitted ninety (90) or more calendar days after the end of the billing cycle.
 - viii. Revised Invoices - Any invoice that is corrected or revised must use the original invoice number or ID when resubmitting to the County. A notation such as "corrected invoice" or "revised invoice" must be described on the corrected or revised invoice,

but the original invoice number or ID must remain the same.

Payment of undisputed invoices shall be made within Net Sixty (60) days of invoice receipt.

Contractor shall be responsible for providing complete and accurate billing and contact information to the County.

Contractor shall bill each department according to the items ordered and service provided as requested by the County. Any invoice with charges for guard service or equipment not requested will be corrected within seven (7) calendar days of the County's dispute of the invoice (via email) or the County will short pay what is owed to the Contractor.

The billing may be audited by the County at any time. County will notify Contractor via email of any billing error(s) or invoice dispute(s). Invoice correction(s) will be made within seven (7) calendar days of initial County email notification of billing error or invoice dispute. In some cases, credits may be issued by the Contractor.

Contractor shall provide an automated system to keep real time accountability of security officers reporting to each site, for verification in payment processing.

Any service requests that are not included in the Contract will be denied, unless approved and authorized by the Purchasing Department in writing. A revised contract will be provided to the Contractor if approved by the County's Board of Supervisors.

In the event of non-compliance under the Contract and at the discretion of the County, a fixed amount of seventy-five dollars (\$75.00) per violation, shall be assessed for liquidated damages for each of the following actions and/or scenarios when reported within seven (7) calendar days of the violation:

Operation Issues

- a. Absent guard or supervisor without reasonable excuse such as accident, illness or emergency situation.
- b. Failure to replace a Guard or Supervisor within one (1) hour.
- c. Guards or supervisors being Out-of-Uniform and/or exhibiting prohibited items while in full uniform.
- d. Usage of personal electronic devices by guards or supervisors while on duty except in emergency situations.
- e. Sitting in personal vehicles by guards or supervisors unless otherwise stated in post orders.
- f. Sleeping while on duty.
- g. Failure to follow Post Orders.
- h. Failure to provide updated Post Orders quarterly and in Microsoft Word format.
- i. Supervision being out of compliance as it relates to **Section 3**.
- j. Supervision Requirements (see Section 3).

Invoice Issues

- a. Contractor fails to acknowledge via email the County's email request for a disputed invoice within forty-eight (48) hours of the initial email request from the County. A penalty is assessed to the Contractor per email request.
- b. Contractor fails to correct invoice within seven (7) calendar days from the time the County first makes the request (via email) on a disputed invoice. A penalty is assessed to the Contractor per disputed invoice.
- c. Contractor fails to include on each invoice the corresponding full Request Guard Services

(RGS) document number. A penalty is assessed to the Contractor based on the language stipulated in Sections a. and b.

- d. Contractor fails to include on each invoice the exact matching facility (location) name and address as described from the corresponding Request Guest Services (RGS) document. A penalty is assessed to the Contractor based on the language stipulated in Section c.

VI. PROPOSAL SUBMISSION

A. General

1. All interested and qualified Proposers are invited to submit a Proposal for consideration. Submission of a Proposal indicates that the Proposer has read and understands the entire RFP, including all appendixes, attachments, exhibits, schedules, and addenda (as applicable) and that all concerns regarding the RFP have been resolved.
2. Proposals must be received by the designated date and time. **All proposers must register with the ePro system prior to the date and time to receive the proposal or they will be disqualified. Late or incomplete proposals will not be accepted.** System-related issues in ePro shall be directed to the Purchasing Department at (909) 387-2060. For procurement questions involving ePro, please contact the RFP Contact identified in Section I, Paragraph A - Purpose.
3. The Proposer acknowledges that its electronic signature is legally binding. Submittals in ePro will be opened from the system's encrypted lock box after the deadline and evaluated as stated in this RFP.
4. Paper responses **may be submitted in lieu of electronic** submission, by mail or in person to the RFP Contact and will be time/date stamped when received. Proposals can be withdrawn at any time prior to the scheduled Deadline for Proposals.

Hand carried Proposals may be delivered to the RFP Contact between the hours of 8:00 a.m. and 4:00 p.m., Monday through Friday, excluding holidays observed by the County. Proposers are responsible for informing any commercial delivery service, if used, of all delivery requirements, and for ensuring that the address information appears on the outer wrapper or envelope used by such service.

5. **If the proposal is submitted through ePro only, the Proposer shall not include Attachment E, "Fee Proposal Sheet(s)", as part of Proposer's ePro submittal, but instead shall mail or submit in person Attachment E, in a separate sealed envelope labeled "Fee Proposal Sheet" with the RFP Number and Title and the name of the Proposer clearly marked on the outside, to the address stated in Section 1, Paragraph B. The proposal and Attachment E must be received (in separate envelopes) on or before the Deadline for Proposals. Failure to comply with this requirement shall disqualify the Proposer.**
6. Proposals must be submitted in the format described below. Proposals are to be prepared in such a way as to provide a straightforward, concise description of capabilities to satisfy the requirements of this RFP.
7. Proposals must be completed in all respects as required in this section. A Proposal may not be considered if it is conditional or incomplete.

B. Proposal Format

Responses to this RFP must be in the form of a Proposal package, which must be submitted in the following format:

1. Presentation

Proposal must be formatted for 8 ½ x 11 paper. Each page, including attachments, must be clearly and consecutively numbered.

2. Cover Page

Use Attachment A as the cover page.

This form must be fully completed and signed by an authorized officer of the Proposer.

3. Table of Contents

All pages of the Proposal, including the enclosures, must be clearly and consecutively numbered and correspond to the Table of Contents.

4. Statement of Certification

Include the following on Attachment B:

- a. A statement that the offer made in the Proposal is firm and binding for 270 days from the Deadline for Proposals.
- b. A statement that all aspects of the Proposal, including cost, have been determined independently, without consultation with any other Proposer (competitor) for the purpose of restricting competition.
- c. A statement that all declarations in the Proposal and attachments are true and that this shall constitute a warranty, the falsity of which will entitle the County to pursue any remedy by law.
- d. A statement that the Proposer agrees that all aspects of the RFP and the Proposal submitted shall be binding if the Proposal is selected and a Contract awarded.
- e. A statement that the Proposer agrees to provide the County with any other information the County determines is necessary for an accurate determination of the Proposer's ability to perform the Services as proposed.
- f. A statement that the Proposer, if selected will comply with all applicable rules, laws and regulations.
- g. A statement that the Proposer has reviewed the RFP and General Contract Terms in their entirety and have no exceptions to any requirements, terms or conditions, except as noted in Attachment H.

5. Statement of Experience and Qualifications

Include the following in this section of the Proposal:

- a. Business name of the Proposer and type of legal entity such as corporation, partnership, etc. If Proposer is a business entity that must be registered with the California Secretary of State, Proposer shall provide the County the entity number assigned to it by the Secretary of State.
- b. Number of years the Proposer has been in business under the present business name, as well as related prior business names.
- c. Statement that the Proposer does not have any commitments or potential commitments that may impact the Proposer's ability to perform the Contract, if awarded.

6. Licenses, Permits, and/or Certifications

Provide copies of all licenses, permits and/or certifications in Attachment C as required under Section X. TERMS AND CONDITIONS Paragraph A, 22.

7. Financials

Provide Proposer's Annual Report for the previous two years. Proposer must also include independently audited financial statements for the most recent completed fiscal year. If audited financial statements are not available, please provide un-audited financial statements along with a

certification from the Proposer's accountant that the information accurately reflects the Proposer's current financial status. If the Proposer is a sole proprietorship, please provide Schedule C of the Internal Revenue Service forms as well as a certification from the owner and the accountant that the information accurately reflects the Proposer's current financial status.

8. Project Team Organization Chart

Provide an organization chart illustrating the project team, and clearly show the organization of the team and the hierarchy of the members. It must include:

- a. Organizational framework for the proposed project team.
- b. Company name and staff name for each role identified in the chart.
- c. Resumes of key personnel, including qualifications, education and project experience

9. Proposal Description

The Proposal should include the following:

- a. A brief synopsis of the Proposer's understanding of the County's needs and how the Proposer plans to meet them.
- b. A detailed statement of the proposed Services.
- c. An explanation of any assumptions or constraints.

10. Work Plan and Schedule

- a. Explain how work, and knowledge will be transitioned to the County or a new vendor at the end of the contract period.

11. Certification Regarding Debarment or Suspension

Complete Attachment D.

12. Cost

Complete proposed pricing on Attachment E and enclose it in a separately sealed and labeled envelope to be submitted as part of the Proposal.

13. References

Provide three (3) references from other entities, preferably public agencies, of same or similar size as the County, with whom you have established a contract on a project of this nature. Provide Contact Name, Address, Phone Number, and dates Services were provided on Attachment F.

14. Former County Officials

Complete Attachment G.

15. Exceptions to RFP

Complete Attachment H.

16. Public Records Act Exemptions

Complete Attachment I – Public Records Act Exemptions if applicable.

17. Indemnification and Insurance Requirements Affidavit

Submit evidence of ability to insure as stated in Section X, Paragraph B – Indemnification and Insurance Requirements. Proposer must complete and submit Attachment J – Indemnification and Insurance Requirements Affidavit, and ensure the form is complete, including the signature from Proposer's insurance broker/agent.

18. Conflict of Interest

Complete Attachment K – Conflict of Interest and Political Reform Act Obligations.

19. Campaign Contributions Disclosure (SB 1439)

Complete Attachment L – Campaign Contributions Disclosure (SB 1439)

VII. EVALUATION

Proposals will be subject to an Initial Review to confirm responsiveness, by determining whether each Proposal includes the stipulated content, required certifications or licensing, etc., and is presented in the required format, in order for the Proposal to advance for evaluation. Any reasonable person reviewing for responsiveness must be able to ascertain that the Proposal meets these requirements.

The evaluation process includes the following categories and may include additional specific criteria. Likewise, the listed considerations are possible considerations, and may not be the only factors involved in the evaluation.

A. QUALIFICATIONS AND EXPERIENCE

Weight: 35%

Considerations: Proposer background and reputation, qualifications of the project team, experience with local approval agencies, experience with publicly bid projects, experience with similar services and entities.

B. RESERVED

C. TECHNICAL REVIEW

Weight: 35%

Considerations: Statement of understanding of the County's needs scheduling, equipment requirement, and value-added aspects. Technical specifications and functionality, quality control, training, adequacy of support staff and subcontractors, risk management, and value-added aspects. All sites must include guard tracking software.

D. REFERENCES

Weight: 10%

Considerations: Satisfactory performance of similar work, demonstrated knowledge and expertise, work product, quality of interactions, capability of assigned team members, likelihood of continued use, etc.

E. INTERVIEW, PRESENTATION, OR DEMONSTRATION

Weight: 20%

Considerations: Content conveyed or demonstrated in person to the evaluation panel.

The County may, at its sole discretion, create a shortlist of Proposals for further evaluation; require an oral interview, presentation, or demonstration; and utilize outside experts to assist in the evaluation process.

The County will establish an evaluation panel with responsibility for reviewing all Proposals and conducting the qualifications evaluation. A Facilitator will manage the integrity of the qualifications evaluation process and will not be a voting member of the evaluation panel. An initial meeting will be scheduled and held with the evaluation panel members, wherein the Facilitator will distribute all relevant documents to the evaluators including the RFP, evaluation worksheets for each Proposal, and written evaluation instructions.

After the initial meeting, evaluators will independently review and score the Proposals. The evaluation panel will then convene again to discuss the individual scores to resolve questions and to discuss the basis for individual scores, but not for the evaluators to agree upon scoring. At the end of this discussion, each evaluator will be given an option to revise his/her scores.

Evaluators will make independent determinations for scores, including review and understanding of any additional information obtained by the group discussion. In the event a score is revised, the evaluator will strike out the original score, document the new score, and provide comments to support the revision.

If clarifying information is needed at any point, the Facilitator will contact Proposer(s) to obtain the necessary information. The Facilitator will then provide the information to the evaluation panel electronically or verbally, as appropriate.

If the qualifications evaluation process includes components such as oral interviews, product demonstration, and/or site visits, the Facilitator will coordinate those with evaluators. Individual scoring and any subsequent evaluation panel meetings with respect to such components must be conducted.

Once all scorings are finalized and documented, the Facilitator will collect individual evaluation worksheets to create a final qualifications evaluation scoring worksheet and rank the proposals first, second, third, etc.

Following the qualifications evaluation and ranking of the proposals, the Facilitator will open all fee proposals. The ranking of the proposals will not be altered once the fee proposals have been opened. However, the fee proposals will be used during negotiations with the selected Proposer(s).

VIII. NEGOTIATIONS AND NOTICE OF INTENT TO AWARD

The County may require the potential Proposer(s) selected to participate in negotiations. This may include cost, technical, or other clarifications needed to make a decision.

A. Contract Negotiation

After selection, negotiations may be conducted with the Proposer(s) of the highest-ranked Proposal(s). Negotiations, if held, shall be within the scope of work in the request for Proposals.

If the contract negotiations take place in San Bernardino County, California, the Proposer will be responsible for its travel and per diem expenses of its personnel.

B. Failure to Negotiate

If the selected Proposer:

1. Fails to provide the information required to begin negotiations in a timely manner; or
2. Fails to negotiate in good faith; or
3. Indicates it cannot perform the Contract within the budgeted funds available for the services; or
4. If the Proposer and the County, after a good faith effort, simply cannot come to terms;

Then the County may terminate negotiations with the Proposer initially selected and commence negotiations with the next highest ranked Proposer.

C. Notice of Intent to Award (NOIA) – Proposer Notification of Selection

After the completion of Contract negotiations, a written or electronic Notice of Intent to Award (NOIA) and denial letters (or a copy of the NOIA) will be issued to all Proposers. The issuance date of the NOIA is the date the NOIA was delivered by email or into the care of the United States Postal Service for delivery to the Proposer.

D. Review of Financial Performance

As indicated in Section VII, Section B, financial information may be used to evaluate and select the Proposal(s) deemed to be in the County's best interest. Alternatively, at the County's sole discretion, the financial performance of the intended Contractor may be assessed prior to Contract award. Financial

performance deemed unsatisfactory by the County may result in non-award or a recommendation for award to another Proposer(s).

E. Award

A Contract will be awarded based on a competitive selection of Proposals received. The contents of the Proposal of the successful Proposer will become contractual obligations and failure to accept these obligations in a Contract may result in cancellation of the award.

IX. APPEAL AND AWARD

In the event a dispute arises concerning the Proposal process prior to the award of the Contract, the Proposer raising the dispute shall submit a request for resolution in writing to the Purchasing Agent. Proposer may appeal the recommended award or denial of award (Protest), provided the Protest:

1. Is submitted in writing.
2. Is submitted within ten (10) calendar days of the issuance date of the NOIA.

A Protest can only be brought on the following grounds:

1. Failure of the County to follow the selection procedures and adhere to requirements specified in the RFP or any addenda or amendments.
2. Violation of conflict of interest as provided by California Government Code Section 87100 et seq.
3. Violation of State or Federal law.

Protests will not be accepted for any other reasons than those stated above. All Protests must be sent to:

Pete Mendoza, Interim Director
San Bernardino County
Purchasing Department
777 E. Rialto Avenue
San Bernardino, CA 92415-0760

Upon receipt of the formal Protest, the Purchasing Agent, or his/her designee, will attempt to resolve the Protest. A Protest shall be disallowed when, in the judgment of the Purchasing Agent it has been submitted: (1) as a delay tactic; (2) for the purpose of posturing the Proposer advantageously for future procurement; (3) in a form that deviates from the one prescribed; (4) without adequate factual basis or merit; or (5) in an untimely manner.

The Purchasing Agent shall make a decision concerning the appeal, and notify the Proposer submitting the Protest, within a reasonable timeframe prior to the tentatively scheduled date for awarding the Contract. The decision of the Purchasing Agent shall be deemed final.

Alternatively, at the Purchasing Agent's discretion, an Appeal Panel consisting of five (5) members appointed by the Purchasing Agent shall hear the Protest. The Proposer will be provided reasonable notice of the time, date and location of the hearing. In the event that a protesting Proposer does not appear at the Protest hearing as scheduled, the Protest will be disallowed.

The hearing is informal, in that it is not subject to the strict rules of evidence or procedure, and live witnesses, if any, will not be sworn. All relevant evidence is admissible, including hearsay. It will be up to the Appeal Panel members to consider the credibility of the evidence and the weight to give it.

The Panel will determine by at least three (3) affirmative votes: 1) whether the Protest was submitted timely; 2) whether the Protest is based on at least one of the three designated grounds identified above; and 3) whether the grounds on which the Protest are based have been substantiated.

If any of the grounds are determined to be valid, the Panel will also decide if the valid portion of the Protest has so tainted the RFP process that it is unfair to the Proposer or whether the valid grounds for the Protest are in the nature of harmless error and that the RFP process was fair to the Proposer. The Panel will not re-evaluate the Proposals.

The Purchasing Agent shall notify the Proposer making the Protest of the decision, within a reasonable timeframe prior to the tentatively scheduled date for awarding the Contract. The decision of the Appeal Panel shall be deemed final. If the Contract must be approved by the Board, after receiving a decision from the Purchasing Agent or Appeal Panel, the Proposer may then present its Protest to the Clerk of the Board of Supervisors for the Board's review and decision. The Proposer must file its written Protest with the Clerk of the Board or provide a verbal Protest (typically limited to three minutes) prior to the Board making a decision on the Contract. Any decision of the Board shall be deemed final.

A Proposer protesting the results of any of the processes described herein must follow the procedures set forth. By submitting a "Letter of Intent to Protest", the Proposer has agreed that the protest procedures herein shall precede any action in a judicial or quasi-judicial tribunal regarding this Proposal. Protests that do not follow these procedures shall not be considered. The protest procedures constitute the sole administrative remedy available to the Proposer under this RFP. Upon exhaustion of this remedy no additional recourse is available.

X. TERMS AND CONDITIONS

The selected Proposer will be required to enter into a formal Contract with the County. This RFP sets forth some of the general provisions which will be included in the final Contract. In submitting a response to this RFP, Proposer will be deemed to have agreed to each clause unless the Proposal identifies an objection and County agrees to a change of language in writing. All objections to any Terms and Conditions must be listed on Attachment H – Exceptions to RFP, or any exception thereto shall be waived.

A. General

1. Contract Amendments

Contractor agrees any alterations, variations, modifications, or waivers of the provisions of the Contract, shall be valid only when reduced to writing, executed and attached to the original Contract and approved by the person(s) authorized to do so on behalf of Contractor and County.

2. Contract Assignability

Without the prior written consent of the County, the Contract is not assignable by Contractor either in whole or in part.

3. Contract Exclusivity

This is not an exclusive Contract. The County reserves the right to enter into a Contract with other Contractors for the same or similar Services. The County does not guarantee or represent that the Contractor will be permitted to perform any minimum amount of work or receive compensation other than on a per order basis, under the terms of this Contract.

4. **Attorney's Fees and Costs**

If any legal action is instituted to enforce any party's rights hereunder, each party shall bear its own costs and attorney's fees, regardless of who is the prevailing party. This paragraph shall not apply to those costs and attorney's fees directly arising from a third-party legal action against a party hereto and payable under the Indemnification and Insurance Requirements.

5. **Background Checks for Contractor Personnel**

Contractor shall ensure that its personnel (a) are authorized to work in the jurisdiction in which they are assigned to perform Services; (b) do not use legal or illegal substances in any manner which will impact their ability to provide services to the County; and (c) are not otherwise disqualified from performing the Services under applicable law. If requested by the County and not in violation of applicable law, Contractor shall conduct a background check, at Contractor's sole expense, on all its personnel providing Services. If requested by the County, Contractor shall provide the results of the background check of each individual to the County. Such background check shall be in the form generally used by Contractor in its initial hiring of employees or contracting for contractors or, as applicable, during the employment-screening process but must, at a minimum, have been performed within the preceding 12-month period. Contractor personnel who do not meet the County's hiring criteria, in County's sole discretion, shall not be assigned to work on County property or Services, and County shall have the right, at its sole option, to refuse access to any Contractor personnel to any County facility.

6. **Change of Address**

Contractor shall notify the County in writing of any change in mailing address within ten (10) business days of the change.

7. **Choice of Law**

This Contract shall be governed by and construed according to the laws of the State of California.

8. **Compliance with County Policy**

In performing the Services and while at any County facilities, Contractor personnel (including subcontractors) shall (a) conduct themselves in a businesslike manner; (b) comply with the policies, procedures, and rules of the County regarding health and safety, and personal, professional and ethical conduct; (c) comply with the finance, accounting, banking, Internet, security, and/or other applicable standards, policies, practices, processes, procedures, and controls of the County; and (d) abide by all laws applicable to the County facilities and the provision of the Services, and all additions and modifications to each of subsections (b),(c), and (d) (collectively, "County Policies"). County Policies, and additions or modifications thereto, may be communicated orally or in writing to Contractor or Contractor personnel or may be made available to Contractor or Contractor personnel by conspicuous posting at a County facility, electronic posting, or other means generally used by County to disseminate such information to its employees or contractors. Contractor shall be responsible for the promulgation and distribution of County Policies to Contractor personnel to the extent necessary and appropriate.

County shall have the right to require Contractor's employees, agents, representatives and subcontractors to exhibit identification credentials issued by County in order to exercise any right of access under this Contract.

9. **Confidentiality**

ContractorContractorContractorContractorContractorContractorContractor shall protect from unauthorized use or disclosure the names and other identifying information concerning persons receiving Services pursuant to this Contract, except for statistical information not identifying any participant. Contractor shall not use or disclose any identifying information for any purpose other than carrying out

the Contractor's obligations under this Contract, except as may otherwise be required by law. This provision will remain in force even after the termination of the Contract.

10. Primary Point of Contact

The Contractor will designate an individual to serve as the primary point of contact for the Contract. Contractor or designee must respond to County inquiries within two (2) business days. Contractor shall not change the primary contact without written acknowledgement to the County. Contractor will also designate a back-up point of contact in the event the primary contact is not available.

11. County Representative

The *Interim Director of Purchasing* or his/her designee shall represent the County in all matters pertaining to the Services to be rendered under this Contract, including termination and assignment of this Contract, and shall be the final authority in all matters pertaining to the Services/Scope of Work by Contractor. If this contract was initially approved by the San Bernardino County Board of Supervisors, then the Board of Supervisors must approve all amendments to this Contract.

12. Damage to County Property

Contractor shall repair, or cause to be repaired, at its own cost, all damage to County vehicles, facilities, buildings or grounds caused by the willful or negligent acts of Contractor or employees or agents of the Contractor. Such repairs shall be made immediately after Contractor becomes aware of such damage, but in no event later than thirty (30) days after the occurrence.

If the Contractor fails to make timely repairs, the County may make any necessary repairs. For such repairs, the Contractor, shall repay all costs incurred by the County, by cash payment upon demand or County may deduct such costs from any amounts due to the Contractor from the County, as determined at County's sole discretion.

13. Debarment and Suspension

The Contractor certifies that neither it nor its principals or subcontractors is presently disbarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation in this transaction by any federal department or agency. (See the following United States General Services Administration's System for Award Management website <https://www.sam.gov>). Contractor further certifies that if it or any of its subcontractors are business entities that must be registered with the California Secretary of State, they are registered and in good standing with the Secretary of State.

14. Drug and Alcohol-Free Workplace

In recognition of individual rights to work in a safe, healthful and productive work place, as a material condition of this Contract, Contractor agrees that the Contractor and the Contractor's employees, while performing service for the County, on County property, or while using County equipment:

- a. Shall not be in any way impaired because of being under the influence of alcohol or an illegal or controlled substance.
- b. Shall not possess an open container of alcohol or consume alcohol or possess or be under the influence of an illegal or controlled substance.
- c. Shall not sell, offer, or provide alcohol or an illegal or controlled substance to another person, except where Contractor or Contractor's employee who, as part of the performance of normal job duties and responsibilities, prescribes or administers medically prescribed drugs.

Contractor shall inform all employees that are performing service for the County on County property, or using County equipment, of the County's objective of a safe, healthful and productive work place and the prohibition of drug or alcohol use or impairment from same while performing such service for the County.

The County may terminate for default or breach of this Contract and any other Contract the Contractor has with the County, if the Contractor or Contractor's employees are determined by the County not to be in compliance with above.

15. Duration of Terms

This Contract, and all of its terms and conditions, shall be binding upon and shall inure to the benefit of the heirs, executors, administrators, successors, and assigns of the respective parties, provided no such assignment is in violation of the provisions of this Contract.

16. Employment Discrimination

During the term of the Contract, Contractor shall not discriminate against any employee or applicant for employment because of race, religious creed, color, national origin, ancestry, physical disability, mental disability, medical condition, genetic information, marital status, sex, gender, gender identity, gender expression, sexual orientation, age, or military and veteran status. Contractor shall comply with Executive Orders 11246, 11375, 11625, 12138, 12432, 12250, 13672, Title VI and VII of the Civil Rights Act of 1964, the California Fair Employment and Housing Act and other applicable Federal, State and County laws and regulations and policies relating to equal employment and contracting opportunities, including laws and regulations hereafter enacted.

17. Environmental Requirements

In accordance with County Policy 11-08, the County prefers to acquire and use products with higher levels of post-consumer recycled content. Environmentally preferable goods and materials must perform satisfactorily and be available at a reasonable price. The County requires Contractor to use recycled paper for any printed or photocopied material created as a result of this Contract. Contractor is also required to use both sides of paper sheets for reports submitted to the County whenever practicable.

To assist the County in meeting the reporting requirements of the California Integrated Waste Management Act of 1989 (AB 939), Contractor must be able to annually report the County's environmentally preferable purchases. Contractors must also be able to report on environmentally preferable goods used in the provision of Services to the County, utilizing a County approved form.

18. Improper Influence

Contractor shall make all reasonable efforts to ensure that no County officer or employee, whose position in the County enables him/her to influence any award of this contract or any competing offer, shall have any direct or indirect financial interest resulting from the award of this Contract or shall have any relationship to the Contractor or officer or employee of the Contractor.

19. Improper Consideration

Contractor shall not offer (either directly or through an intermediary) any improper consideration such as, but not limited to, cash, discounts, service, the provision of travel or entertainment, or any items of value to any officer, employee or agent of the County in an attempt to secure favorable treatment regarding this Contract.

The County, by written notice, may immediately terminate any Contract if it determines that any improper consideration as described in the preceding paragraph was offered to any officer, employee or agent of the County with respect to the Proposal and award process. This prohibition shall apply to any amendment, extension or evaluation process once a Contract has been awarded.

Contractor shall immediately report any attempt by a County officer, employee or agent to solicit (either directly or through an intermediary) improper consideration from Contractor. The report shall be made to the supervisor or manager charged with supervision of the employee or to the County Administrative

Office. In the event of a termination under this provision, the County is entitled to pursue any available legal remedies.

20. Informal Dispute Resolution

In the event the County determines that service is unsatisfactory, or in the event of any other dispute, claim, question or disagreement arising from or relating to this Contract or breach thereof, the parties hereto shall use their best efforts to settle the dispute, claim, question or disagreement. To this effect, they shall consult and negotiate with each other in good faith and, recognizing their mutual interests, attempt to reach a just and equitable solution satisfactory to both parties.

21. Legality and Severability

The parties' actions under the Contract shall comply with all applicable laws, rules, regulations, court orders and governmental agency orders. The provisions of this Contract are specifically made severable. If a provision of the Contract is terminated or held to be invalid, illegal or unenforceable, the validity, legality and enforceability of the remaining provisions shall remain in full effect.

22. Licenses, Permits, and/or Certifications

Contractor shall ensure that it has all necessary licenses, permits and/or certifications required by Federal, State, County, and municipal laws, ordinances, rules and regulations. The Contractor shall maintain these licenses, permits, and/or certifications in effect for the duration of this Contract. Contractor will notify County immediately of loss or suspension of any such licenses, permits, and/or certifications. Failure to maintain required licenses, permits, and certifications may result in immediate termination of this Contract.

23. Material Misstatement/Misrepresentation

If during the course of the administration of this Contract, the County determines that Contractor has made a material misstatement or misrepresentation or that materially inaccurate information has been provided to the County, this Contract may be immediately terminated. If this Contract is terminated according to this provision, the County is entitled to pursue any available legal remedies.

24. Mutual Covenants

The parties to this Contract mutually covenant to perform all of their obligations hereunder, to exercise all discretion and rights granted hereunder, and to give all consents in a reasonable manner consistent with the standards of "good faith" and "fair dealing".

25. Nondisclosure

Contractor shall hold as confidential and use reasonable care to prevent unauthorized access by, storage, disclosure, publication, dissemination to and/or use by third parties of, confidential information that is either: (1) provided by the County to Contractor or an agent of Contractor or otherwise made available to Contractor or Contractor's agent in connection with this Contract; or, (2) acquired, obtained, or learned by Contractor or an agent of Contractor in the performance of this Contract. For purposes of this provision, confidential information means any data, files, software, information or materials in oral, electronic, tangible or intangible form and however stored, compiled or memorialize and includes, but is not limited to: technology infrastructure, architecture, financial data, trade secrets, equipment specifications, user lists, passwords, research data, and technology data.

26. Notice of Delays

Except as otherwise provided herein, when either party has knowledge that any actual or potential situation is delaying or threatens to delay the timely performance of this Contract, that party shall, within twenty-four (24) hours, give notice thereof, including all relevant information with respect thereto, to the other party.

27. Ownership of Documents

All documents, data, products, graphics, computer programs and reports prepared by Contractor pursuant to the Contract shall be considered property of the County upon payment for services (and product, if applicable). All such items shall be delivered to County at the completion of work under the Contract. Unless otherwise directed by County, Contractor may retain copies of such items.

28. Participation Clause

The County desires that Municipalities, School Districts, and other Tax Districts within the San Bernardino County requiring the same services provided herein may at their option and through the County Purchasing agent, avail themselves of this Contract. Upon notice, in writing, the Contractor agrees to the extension of the terms of a resultant contract with such governmental bodies as though they have been expressly identified in this bid, with the provisions that:

- a. Such governmental body does not have and will not have in force any other contract for like purchases.
- b. Such governmental body does not have under consideration for award any other bids or quotations for like purchases.

Such governmental body shall make purchases directly through and to the Contractor. The County will not be liable for any such purchase made between the Contractor and another governmental body who avails themselves of this contract.

29. Air, Water Pollution Control, Safety and Health

Contractor shall comply with all air pollution control, water pollution, safety and health ordinances and statutes, which apply to the work performed pursuant to this Contract.

30. Relationship of the Parties

Nothing contained in this Contract shall be construed as creating a joint venture, partnership, or employment arrangement between the Parties hereto, nor shall either Party have the right, power or authority to create an obligation or duty, expressed or implied, on behalf of the other Party hereto. In the performance of this Contract, Contractor, its agents and employees, shall act in an independent capacity and not as officers, employees, or agents of the San Bernardino County. Any provision of this Contract that may appear to give the County any right to direct the Contractor concerning the details of performing the services/Scope of Work, or to exercise any control over such performance, shall mean only that the Contractor shall follow the direction of the County concerning the end results of the performance.

31. Release of Information

No news releases, advertisements, public announcements or photographs arising out of this Contract or Contractor's relationship with County may be made or used without prior written approval of the County.

32. Strict Performance

Failure by a party to insist upon the strict performance of any of the provisions of this Contract by the other party, or the failure by a party to exercise its rights upon the default of the other party, shall not constitute a waiver of such party's right to insist and demand strict compliance by the other party with the terms of this Contract thereafter.

33. Subcontracting

Contractor agrees not to enter into any subcontracting Contracts for work contemplated under the Contract without first obtaining written approval from the County. Any subcontractor shall be subject

to the same terms and conditions as Contractor. Contractor shall be fully responsible for the performance and payments of any subcontractor's contract.

Contractor shall obtain County's written consent, which County may withhold in its sole discretion, before entering into Contracts with or otherwise engaging any subcontractors who may supply any part of the Services to County. At County's request, Contractor shall provide information regarding the subcontractor's qualifications and a listing of a subcontractor's key personnel including, if requested by the County, resumes of proposed subcontractor personnel. Contractor shall remain directly responsible to County for its subcontractors and shall indemnify County for the actions or omissions of its subcontractors under the terms and conditions specified in Paragraph B of this Section X. All approved subcontractors shall be subject to the provision of this contract applicable to Contractor Personnel, including removal pursuant to subsection A.5 of this Section X.

For any subcontractor, Contractor shall:

- 34.1 Be responsible for subcontractor compliance with the Contract and the subcontract terms and conditions; and
- 34.2 Ensure that the subcontractor follows County's reporting formats and procedures as specified by County.
- 34.3 Include in the subcontractor's subcontract substantially similar terms as are provided in Articles B. Contractor Responsibilities and C. General Contract Requirements .

Upon expiration or termination of this Contract for any reason, County will have the right to enter into direct Contracts with any of the Subcontractors. Contractor agrees that its arrangements with Subcontractors will not prohibit or restrict such Subcontractors from entering into direct Contracts with County.

34. Subpoena

In the event that a subpoena or other legal process commenced by a third party in any way concerning the Goods or Services provided under this Contract is served upon Contractor or County, such party agrees to notify the other party in the most expeditious fashion possible following receipt of such subpoena or other legal process. Contractor and County further agree to cooperate with the other party in any lawful effort by such other party to contest the legal validity of such subpoena or other legal process commenced by a third party as may be reasonably required and at the expense of the party to whom the legal process is directed, except as otherwise provided herein in connection with defense obligations by Contractor for County.

35. Termination for Convenience

The County reserves the right to terminate the Contract, for any reason, with a thirty (30) day written notice of termination. Such termination may include all or part of the services described herein. Upon such termination, payment will be made to the Contractor for services rendered and expenses reasonably incurred prior to the effective date of termination. Upon receipt of termination notice Contractor shall promptly discontinue services unless the notice directs otherwise. Contractor shall deliver promptly to County and transfer title (if necessary) all completed work, and work in progress, including drafts, documents, plans, forms, data, products, graphics, computer programs and reports.

36. Time of the Essence

Time is of the essence in performance of this Contract and of each of its provisions.

37. Venue

The parties acknowledge and agree that this Contract was entered into and intended to be performed in San Bernardino County, California. The parties agree that the venue of any action or claim brought by any party to this Contract will be the Superior Court of California, San Bernardino County, San

Bernardino District. Each party hereby waives any law or rule of the court, which would allow them to request or demand a change of venue. If any action or claim concerning this Contract is brought by any third-party and filed in another venue, the parties hereto agree to use their best efforts to obtain a change of venue to the Superior Court of California, San Bernardino County, San Bernardino District.

38. Successors and Assigns

This Contract shall be binding upon County and Contractor and their respective successors and assigns.

Neither the performance of this Contract, nor any part thereof, nor any monies due or to become due thereunder may be assigned by Contractor without the prior written consent and approval of County.

Death or Incapacity: If the Contractor transacts business as an individual, his/her death or incapacity shall automatically terminate this Contract as of the date of such event, and neither he/she nor his/her estate shall have any further right to perform hereunder, and County shall pay him/her or his/her estate the compensation payable under Article F, Fiscal Provisions, for any services rendered prior to such termination not heretofore paid, reduced by the amount of additional costs which will be incurred by County by reason of such termination. If there be more than one Contractor and any one of them die or become incapacitated and the others continue to render the services covered herein, County will make payment to those continuing as though there had been no such death or incapacity and County will not be obliged to take any account of the person who died or became incapacitated or to make any payments to such person or his estate. The provision shall apply in the event of progressive or simultaneous occasions of death or incapacity among any group of persons named as Contractor herein, and if death or incapacity befalls the last one of such group before this Contract is fully performed, then the rights shall be as if there had been only one Contractor.

39. RESERVED

40. RESERVED

41. Fiscal Provisions

- a. The maximum amount of reimbursement/payment under this Contract shall be subject to availability of funds to the County. The consideration to be paid to Contractor, as provided herein, shall be in full payment for all Contractor's Services and expenses incurred in the performance hereof, including travel and per diem.
- b. Contractor shall provide County itemized monthly invoices, in arrears, and in a format acceptable to the County for Services performed under the Contract, based on the rates listed in Attachment E – Fee Proposal Cost, attached hereto and incorporated by reference, within twenty (20) days of the end of the previous month. Invoices shall be issued with a Net Sixty (60) day payment term with corresponding Purchase Order and/or Contract number stated on the invoices. County reserves the right to audit invoices submitted by Contractor. County shall make payment to Contractor within sixty (60) working days after receipt of invoice or the resolution of any billing dispute. All invoices shall be sent to the County via one of the following methods:
- c. Contractor shall accept all payments from County via electronic fund transfer (EFT) directly deposited into the Contractor's designated checking or other bank account. Contractor shall promptly comply with directions and accurately complete forms provided by County required to process EFT payments.
- d. County is exempt from Federal excise taxes and no payment shall be made for any personal property taxes levied on Contractor or on any taxes levied on employee wages. The County shall only pay for any State or local sales or use taxes on the Services rendered or equipment and/or parts supplied to the County pursuant to the Contract.

- e. Costs for Services under the terms of this Contract shall be incurred during the Contract period except as approved by County. Contractor shall not use current year funds to pay prior or future year obligations.

42. **RESERVED**

43. **RESERVED**

44. **RESERVED**

45. **Conflict of Interest**

Contractor shall make all reasonable efforts to ensure that no conflict of interest exists between its officers, employees, or subcontractors and the County. Contractor shall make a reasonable effort to prevent officers, employees, subcontractors, or members of governing bodies from using their positions for purposes that are or give the appearance of being motivated by a desire for private gain for themselves or others such as those with whom they have family business, or other ties. Officers, employees, and agents of cities, counties, districts, and other local agencies are subject to applicable conflict of interest codes and state law. In the event the County determines a conflict of interest situation exists, any increase in costs, associated with the conflict of interest situation, may be disallowed by the County and such conflict may constitute grounds for termination of the Contract. This provision shall not be construed to prohibit employment of persons with whom Contractor's officers, employees, or agents have family, business, or other ties so long as the employment of such persons does not result in increased costs over those associated with the employment of any other equally qualified applicant.

46. **RESERVED**

47. **California Consumer Privacy Act**

To the extent applicable, if Contractor is a business that collects the personal information of a consumer(s) in performing Services pursuant to this Contract, Contractor must comply with the provisions of the California Consumer Privacy Act (CCPA). (Cal. Civil Code §§1798.100, et seq.). For purposes of this provision, "business," "consumer," and "personal information" shall have the same meanings as set forth at Civil Code section 1798.140. Contractor must contact the County immediately upon receipt of any request by a consumer submitted pursuant to the CCPA that requires any action on the part of the County, including but not limited to, providing a list of disclosures or deleting personal information. Contractor must not sell, market or otherwise disclose personal information of a consumer provided by the County unless specifically authorized pursuant to terms of this Contract. Contractor must immediately provide to the County any notice provided by a consumer to Contractor pursuant to Civil Code section 1798.150(b) alleging a violation of the CCPA, that involves personal information received or maintained pursuant to this Contract. Contractor must immediately notify the County if it receives a notice of violation from the California Attorney General pursuant to Civil Code section 1798.155(b).

48. **Campaign Contributions Disclosure (SB 1439)**

Contractor has disclosed to the County using a County approved form, whether it has made any campaign contributions of more than \$250 to any member of the Board of Supervisors or County elected officer [Sheriff, Assessor-Recorder-Clerk, Auditor-Controller/Treasurer/Tax Collector and the District Attorney] within the earlier of: (1) the date of the submission of Contractor's proposal to the County, or (2) 12 months before the date this Contract was approved by the Board of Supervisors or Purchasing Department. Contractor acknowledges that under Government Code section 84308, Contractor is prohibited from making campaign contributions of more than \$250 to any member of

the Board of Supervisors or County elected officer for 12 months after the County's consideration of the Contract.

In the event of a proposed amendment to this Contract, the Contractor will provide the County a written statement disclosing any campaign contribution(s) of more than \$250 to any member of the Board of Supervisors or County elected officer within the preceding 12 months of the date of the proposed amendment.

Campaign contributions include those made by any agent/person/entity on behalf of the Contractor or by a parent, subsidiary or otherwise related business entity of Contractor.

B. Indemnification and Insurance Requirements

1. Indemnification

Contractor agrees to indemnify, defend (with counsel reasonably approved by County) and hold harmless the County and its authorized officers, employees, agents and volunteers (Indemnitees) from any and all claims, actions, losses, damages and/or liability arising out of this Contract from any cause whatsoever, including the acts, errors or omissions of any person and for any costs or expenses incurred by the County on account of any claim except where such indemnification is prohibited by law. This indemnification provision shall apply regardless of the existence or degree of fault of Indemnitees. The Contractor indemnification obligation applies to the County's "active" as well as "passive" negligence but does not apply to the County's "sole negligence" or "willful misconduct" within the meaning of Civil Code Section 2782.

Additional Insured

All policies, except for the Workers' Compensation, Errors and Omissions and Professional Liability policies shall contain additional endorsements naming the County and its officers, employees, agents and volunteers as additional insureds with respect to liabilities arising out of the performance of Services hereunder. The additional insured endorsements shall not limit the scope of coverage for the County to vicarious liability but shall allow coverage for the County to the full extent provided by the policy. Such additional insured coverage shall be at least as broad as Additional Insured (Form B) endorsement form ISO, CG 2010.11 85.

Waiver of Subrogation Rights

The Contractor shall require the carriers of the required coverages to waive all rights of subrogation against the County, its officers, employees, agents, volunteers, Contractors, and Subcontractors. All general or auto liability insurance coverage provided shall not prohibit the Contractor and Contractor's employees or agents from waiving the right of subrogation prior to a loss or claim. The Contractor hereby waives all rights of subrogation against the County.

Policies Primary and Non-Contributory

All policies required herein are to be primary and non-contributory with any insurance or self-insurance programs carried or administered by the County.

Severability of Interests

Contractor agrees to ensure that coverage provided to meet these requirements is applicable separately to each insured and there will be no cross liability exclusions that preclude coverage for suits between the Contractor and County or between the County and any other insured or additional insured under the policy.

Proof of Coverage

Contractor shall furnish Certificates of Insurance to the County Department administering the Contract evidencing the insurance coverage at the time the Contract is executed, additional

endorsements, as required shall be provided prior to the commencement of performance of Services hereunder, which certificates shall provide that such insurance shall not be terminated or expire without thirty (30) days written notice to the Department, and Contractor shall maintain such insurance from the time Contractor commences performance of Services hereunder until the completion of such Services. Within fifteen (15) days of the commencement of this Contract, Contractor shall furnish a copy of the Declaration page for all applicable policies and will provide complete certified copies of the policies and endorsements immediately upon request.

Acceptability of Insurance Carrier

Unless otherwise approved by Risk Management, insurance shall be written by insurers authorized to do business in the State of California and with a minimum "Best" Insurance Guide rating of "A-VII".

Deductibles and Self-Insured Retention

Any and all deductibles or self-insured retentions in excess of \$10,000 shall be declared to and approved by Risk Management.

Failure to Procure Coverage

In the event that any policy of insurance required under this contract does not comply with the requirements, is not procured, or is canceled and not replaced, the County has the right but not the obligation or duty to cancel the Contract or obtain insurance if it deems necessary and any premiums paid by the County will be promptly reimbursed by the Contractor or County payments to the Contractor(s)/Applicant(s) will be reduced to pay for County purchased insurance.

Insurance Review

Insurance requirements are subject to periodic review by the County. The Director of Risk Management or designee is authorized, but not required, to reduce, waive or suspend any insurance requirements whenever Risk Management determines that any of the required insurance is not available, is unreasonably priced, or is not needed to protect the interest of the County. In addition, if Risk Management determines that heretofore unreasonably priced or unavailable types of insurance coverage or coverage limits become reasonably priced or available, the Director of Risk Management or designee is authorized, but not required, to change the these insurance requirements to require additional types of insurance coverage or higher coverage limits, provided that any such change is reasonable in light of past claims against the County, inflation, or any other item reasonably related to the County's risk.

Any change requiring additional types of insurance coverage or higher coverage limits must be made by amendment to this Contract. Contractor agrees to execute any such amendment within thirty (30) days of receipt.

Any failure, actual or alleged, on the part of the County to monitor or enforce compliance with any of the insurance and indemnification requirements will not be deemed as a waiver of any rights on the part of the County.

2. Insurance Specifications

Contractor agrees to provide insurance set forth in accordance with the requirements herein. If Contractor uses existing coverage to comply with these requirements and that coverage does not meet the specified requirements, the Contractor agrees to amend, supplement or endorse the existing coverage to do so.

Without in anyway affecting the indemnity herein provided and in addition thereto, the Contractor shall secure and maintain throughout the contract term the following types of insurance with limits as shown:

Workers' Compensation/Employers Liability

A program of Workers' Compensation insurance or a State-approved Self-Insurance Program in an amount and form to meet all applicable requirements of the Labor Code of the State of California, including Employer's Liability with two hundred and fifty thousand dollar (\$250,000) limits, covering all persons, including volunteers, providing services on behalf of the Contractor and all risks to such persons under this Contract.

If Contractor has no employees, it may certify or warrant to County that it does not currently have any employees or individuals who are defined as "employees" under the Labor Code and the requirement for Workers' Compensation coverage will be waived by the County's Director of Risk Management.

With respect to Contractors that are non-profit corporations organized under California or Federal law, volunteers for such entities are required to be covered by Workers' Compensation insurance.

Commercial/General Liability Insurance

Contractor shall carry General Liability Insurance covering all operations performed by or on behalf of Contractor providing coverage for bodily injury and property damage with a combined single limit of not less than five million dollars (\$5,000,000), per occurrence. The policy coverage shall include:

- a. Premises operations and mobile equipment.
- b. Products and completed operations.
- c. Broad form property damage (including completed operations)
- d. Explosion, collapse and underground hazards.
- e. Personal Injury
- f. Contractual liability
- g. \$2,000,000 general aggregate limit

Automobile Liability Insurance

Primary insurance coverage shall be written on ISO Business Auto coverage form for all owned, hired and non-owned automobiles or symbol 1 (any auto). The policy shall have a combined single limit of not less than one million dollars (\$1,000,000) for bodily injury and property damage, per occurrence.

If Contractor is transporting one or more non-employee passengers in performance of Services, the automobile liability policy shall have a combined single limit of two million dollars (\$2,000,000) for bodily injury and property damage per occurrence.

If Contractor owns no autos, a non-owned auto endorsement to the General Liability policy described above is acceptable.

Umbrella Liability Insurance

An umbrella (over primary) or excess policy may be used to comply with limits or other primary coverage requirements. When used, the umbrella policy shall apply to bodily injury/property damage, personal injury/advertising injury and shall include a "dropdown" provision providing primary coverage for any liability not covered by the primary policy. The coverage shall also apply to automobile liability.

Professional Services Requirements

Professional Liability – Professional Liability Insurance with limits of not less than one million (\$1,000,000) per claim or occurrence and two million (\$2,000,000) aggregate limits

or

Errors and Omissions Liability Insurance with limits of not less than one million (\$1,000,000) and two million (\$2,000,000) aggregate limits

or

If insurance coverage is provided on a “claims made” policy, the “retroactive date” shall be shown and must be before the date of the start of the Contract work. The claims made insurance shall be maintained or “tail” coverage provided for a minimum of five (5) years after Contract completion.

Abuse/Molestation Insurance – Contractor shall have abuse or molestation insurance providing coverage for all employees for the actual or threatened abuse or molestation by anyone of any person in the care, custody, or control of any insured, including negligent employment, investigation and supervision. The policy shall provide coverage for both defense and indemnity with liability limits of not less than one million dollars (\$1,000,000) with a two million dollars (\$2,000,000) aggregate limit.

C. Right to Monitor and Audit

1. Right to Monitor

The County, State and Federal governments shall have absolute right to review and audit all records, books, papers, documents, corporate minutes, and other pertinent items as requested, and shall have the absolute right to monitor the performance of Contractor in the delivery of Services provided under this Contract. Contractor shall give full cooperation, in any auditing or monitoring conducted. Contractor shall cooperate with the County in the implementation, monitoring and evaluation of this Contract and comply with any and all reporting requirements established by the County. Contractor shall repay to County within thirty (30) days of receipt of audit findings any reimbursements made by County to Contractor that are determined by subsequent audit to be unallowable pursuant to the terms of this Contract or by law.

2. Records

Contractor shall maintain all records and books pertaining to the delivery of Services under this Contract and demonstrate accountability for Contract performance. All records shall be complete and current and comply with all Contract requirements. Failure to maintain acceptable records shall be considered grounds for withholding of payments for invoices submitted and/or termination of Contract.

All records relating to the Contractor’s personnel, Contractors, Subcontractors, Service/Scope of Work and expenses pertaining to this Contract shall be kept in generally acceptable accounting format. Records should include primary source documents. Fiscal records shall be kept in accordance with Generally Accepted Accounting Principles and must account for all funds, tangible assets, revenue and expenditures. Fiscal records must comply with the appropriate Office of Management and Budget (OMB) Circulars which state the administrative requirements, cost principles and other standards for accountancy.

All records pertaining to Services delivered and all fiscal, statistical and management books and records shall be available for examination and audit by County representatives for a period of three years after final payment under the Agreement or until all pending County, State and Federal audits are completed, whichever is later.

D. Correction of Performance Deficiencies

1. In the event of a problem or potential problem that could impact the quality or quantity of work, Services, or the level of performance under this Contract, Contractor shall notify the County within one (1) working day, in writing and by telephone.

2. Failure by Contractor to comply with any of the provisions, covenants, requirements or conditions of this Contract shall be a material breach of this Contract.
3. Contractor's Primary Contact and County Representative shall attempt in good faith to promptly resolve any dispute, controversy or claim arising out of this Contract. If these representatives are unable to resolve a dispute, controversy or claim with ten (10) days after the initial request for a meeting, then the dispute shall be submitted to an executive-level performance review.

If the Primary Contact and County Representative are not successful in resolving the dispute, negotiations shall be conducted by the Chief Executive Officer, or designee, and the highest level executive for Contractor. If these representatives are unable to resolve the dispute within ten (10) days after the representatives have commenced negotiations, or 20 days have passed since the initial request for negotiations at this level, the Parties may agree in writing to submit the dispute to mediation.

4. In the event of a non-cured breach, County may, at its sole discretion and in addition to any other remedies available at law, in equity, or otherwise specified in this Contract.
 - a. Afford Contractor thereafter a time period within which to cure the breach, which period shall be established at the sole discretion of County;
 - b. Withhold funds pending duration of the breach;
 - c. Discontinue reimbursement to Contractor for and during the period in which Contractor is in breach, which reimbursement shall not be entitled to later recovery;
 - d. Offset against any monies billed by Contractor but yet unpaid by the County;
 - e. Terminate this Contract immediately and be relieved of the payment of any consideration to Contractor. In the event of such termination, the County may proceed with the work in any manner deemed proper by the County. The cost to the County shall be deducted from any sum due to the Contractor under this Contract and the balance, if any, shall be paid by the Contractor upon demand.
5. Unless a remedy is specifically designated as exclusive, no remedy conferred by any of the specific provision of the Contract is intended to be exclusive of any other remedy, and each and every remedy shall be cumulative and shall be in addition to every other remedy given hereunder, now or hereafter existing at law or in equity or by statute or otherwise. The election of any one or more remedies by either Party shall not constitute a waiver of the right to pursue other available remedies.

ATTACHMENT A – COVER PAGE

Use this checklist to ensure that all items requested have been included.

Items Completed		Page (s)
1.	Attachment A – Cover Page	
2.	Attachment B – Statement of Certification	
3.	Attachment C – Licenses, Permits, and/or Certifications	
4.	Attachment D – Certification Regarding Debarment or Suspension; California Secretary of State Business Entity Registration	
5.	Attachment E – Fee Proposal Sheet	
6.	Attachment F – References	
7.	Attachment G – Employment of Former County Officials	
8.	Attachment H – Exceptions to RFP	
9.	Attachment I – Public Records Act Exemptions	
10.	Attachment J – Indemnification and Insurance Requirements Affidavit	
11.	Attachment K – Conflict of Interest and Political Reform Act Obligations	
12.	Attachment L – Campaign Contributions Disclosure (SB 1439)	
13.	Financials (Two Years)	

Proposer Name: _____

Address: _____

Telephone No.: () _____ FAX No.: () _____

Email Address: _____

Federal Tax ID: _____

RFP Contact: _____

Name of Authorized Representative: _____

Title of Authorized Representative: _____

By signing below, the individual acknowledges that he/she has the authority to bind the Proposer to the terms of the Proposal. The individual further acknowledges that he/she has read and understands the RFP, the contents of the Proposal and the Attachments, and attests to the accuracy of the information submitted therein.

Signature of Authorized Representative: _____

Date: _____

**ATTACHMENT B
STATEMENT OF CERTIFICATION**

The following statements are incorporated in our response to San Bernardino County.

	Statement	Agree (initial)	Agree with qualification (initial and attach explanation)
1.	The offer made in the Proposal is firm and binding for 270 days from the date the Proposal is opened.		
2.	All aspects of the Proposal, including cost, have been determined independently, without consultation with any other Proposer or competitor for the purpose of restricting competition.		
3.	All declarations in the Proposal and attachments are true and that this shall constitute a warranty, the falsity of which will entitle the County to pursue any remedy by law.		
4.	Proposer agrees that all aspects of the RFP and the Proposal submitted shall be binding if the Proposal is selected and a Contract awarded.		
5.	Proposer agrees to provide the County with any other information the County determines is necessary for an accurate determination of the Proposer's ability to perform the services as proposed.		
6.	Proposer, if selected will comply with all applicable rules, laws and regulations.		
7.	The RFP has been reviewed in its entirety and Proposer has no exceptions to any requirements, terms, or conditions, except as noted in Attachment H.		

LICENSES, PERMITS, and/or CERTIFICATIONS

EXPIRATION

[illegible]

ATTACHMENT D

CERTIFICATION REGARDING DEBARMENT OR SUSPENSION; CALIFORNIA SECRETARY OF STATE BUSINESS ENTITY REGISTRATION

In compliance with contracts and grants Contracts applicable under the U.S. Federal Awards Program, the following certification is required by all Proposers submitting a response to this RFP:

1. The Proposer certifies, to the best of its knowledge and belief, that neither the Proposer nor its Principals are suspended, debarred, proposed for debarment, or declared ineligible for the award of contracts from the United States federal government procurement or nonprocurement programs, or are individually or collectively listed as such in the United States General Services Administration's System for Award Management (SAM) website (www.sam.gov).
2. The Proposer certifies, to the best of its knowledge and belief, that neither any subcontractor listed in its Proposal, nor subcontractor's Principals are suspended, debarred, proposed for debarment, or declared ineligible for the award of contracts from the United States federal government procurement or nonprocurement programs, or are individually or collectively listed as such in the United States General Services Administration's System for Award Management (SAM) website (www.sam.gov).
3. "Principals," for the purposes of this certification, means officers, directors, owners, partners, and persons having primary management or supervisory responsibilities within a business entity (e.g., general manager, plant manager, head of a subsidiary, division, or business segment, and similar positions).
4. The Proposer shall provide immediate written notice to the Purchasing Agent if, at any time prior to award, the Proposer learns that this certification was erroneous when submitted or has become erroneous by reason of changes in circumstances.
5. This certification is a material representation of fact upon which reliance will be placed when making the award. If it is later determined that the Proposer rendered an erroneous certification, in addition to other remedies available to the County, the County may terminate the Contract resulting from this RFP for default.
6. Proposer affirms that neither it, nor any subcontractor listed in the Proposal, has any record of recent unsatisfactory performance with the County during the past twenty-four (24) months at a minimum.
7. Proposer also certifies that if it or any of the subcontractors listed in the Proposal are business entities that must be registered with the California Secretary of State, they are registered and in good standing with the Secretary of State.

ATTACHMENT E – FEE PROPOSAL COST

Year 1

ITEM #	Position	Unit	Bill Rate	Pay Rate
1	Supervisor	Per Hour		\$22.00
2	OT Rate Supervisor			\$33.00
3	Swing shifts Pay Differential			\$0.50
4	Graveyard Pay Differential			\$1.00
5	Armed Guard (Level 3)	Per Hour		\$21.00
6	OT Rate Armed Guard (Level 3)			\$31.50
7	Swing shifts Pay Differential			\$0.50
8	Graveyard Pay Differential			\$1.00
9	Level 2 Guard	Per Hour		\$20.00
10	OT Rate Level 2 Guard			\$30.00
11	Swing shifts Pay Differential			\$0.50
12	Graveyard Pay Differential			\$1.00
13	Level 1 Guard	Per Hour		\$19.00
14	OT Rate Level 1 Guard			\$28.50
15	Swing shifts Pay Differential			\$0.50
16	Graveyard Pay Differential			\$1.00
17	Lobby Ambassador	Per Hour		\$24.00
18	OT Lobby Ambassador			\$36.00
19	Swing shifts Pay Differential			\$0.50
20	Graveyard Pay Differential			\$1.00
21	Marked Vehicle	Day		
22	Marked Vehicle	Month		
23	Cell Phone	Day		
24	Cell Phone	Month		
25	Two Way Radio	Day		
26	Two Way Radio	Month		
27	Electric Golf Carts	Day		
28	Electric Golf Carts	Month		
29	Gas Golf Carts	Day		
30	Gas Golf Carts	Month		
31	Bicycle	Day		
32	Bicycle	Month		

Note: Please respond on separate Attachment E “Fee Proposal Sheet” located in ePro for all three years.

ATTACHMENT F - REFERENCES

Name of Agency	Contact Name/Address/Email	Phone Number	Dates services provided (from/through*)

Provide a minimum of three (3) customer references Proposer has contracted with, providing the same service as requested in this RFP.

*Enter "**Present**" if still providing the services (Example: 10/08/13 - present).

EMPLOYMENT OF FORMER COUNTY OFFICIALS

[illegible]

ATTACHMENT H – EXCEPTIONS TO RFP

CONTRACTOR NAME _____

ADDRESS _____

TELEPHONE# () _____ FAX # () _____

I have reviewed the RFP in its entirety and have the following exceptions: (Please identify and list your exceptions by indicating RFP, the Section or Paragraph number, and Page number, as applicable. Be specific about your objections to content, language, or omissions. Add as many pages as required.)

ATTACHMENT I – PUBLIC RECORDS ACT EXEMPTIONS

PROPOSER NAME _____

ADDRESS _____

TELEPHONE# () _____ FAX # () _____

Proposer requests that specific portions of the contents of this Proposal be held confidential and not subject to public disclosure pursuant to the Public Records Act. The specific portions are detailed below: (Please identify and list your exemptions by indicating the Section or Paragraph number, and Page number, of the Proposal where the content is contained.) **Each stated exemption must include a citation to supporting legal authority, including statutory authority or case law, to support exemption from the Public Records Act. Requested exemptions that does not meet the requirements of this section will not be considered.**

ATTACHMENT J - INDEMNIFICATION AND INSURANCE REQUIREMENTS AFFIDAVIT

**THE PROPOSER'S INSURANCE COMPANY(S) OR INSURANCE AGENT MUST COMPLETE THIS FORM
AND
THE PROPOSER MUST SUBMIT THIS COMPLETED AFFIDAVIT WITH THE PROPOSAL.**

I, the undersigned (Please check one box) ☐ underwriter ☐ agent/broker, certify that I and the Proposer listed below have jointly reviewed the "Insurance Requirements" in this Request for Proposal (RFP). If the San Bernardino County ("County") awards the Proposer the Contract for this project, I will be able—within fourteen (14) calendar days after the Proposer is notified of the Contract's award—to furnish the County with all the required, insurance certificate(s) and endorsement(s) as specified in Section X, Paragraph B. Indemnification and Insurance Requirements.

Insurance Broker / Agency Name Date

Insurance Broker's / Agent's Name (Printed) Insurance Broker's / Agent's Name (signature)

Address City State Zip Code

Telephone Number FAX Number Email Address

Proposer's Name County RFP Name and Number

Below State the Name of Insurance Company Providing Coverage:

DO NOT write "Will Provide," "To Be Determined," "When required," or similar phrases.

Commercial General Liability Automobile Liability

Workers' Compensation Liability Professional Liability

Pollution Liability Cyber Liability

Sexual Abuse Liability

[NOTE TO PROPOSER: See Section X, Paragraph B. Indemnification and Insurance Requirements, for details on the basic requirements and types of insurance for this agreement.]

NOTE TO THE UNDERWRITER / AGENT-BROKER: If the insurance forms that the Proposer submits to the County do not fully comply with the Insurance Requirements, and/or if the Proposer fails to submit the forms within the 14-day time limit, the County may: (1) declare the Proposer's Proposal non-responsive, and (2) award the Contract to the next highest ranked Proposer.

If you have any questions about the Insurance Requirements, please contact San Bernardino County - Risk Management Department via e-mail Insurance.Questions@rm.sbcounty.gov (Please provide name of RFP with your email question(s)).

ATTACHMENT K

CONFLICT OF INTEREST AND POLITICAL REFORM ACT OBLIGATIONS

Contractor shall make all reasonable efforts to ensure that no County officer or employee, whose position in the County enables him/her to influence any award of the Contract or any competing offer, shall have any direct or indirect financial interest resulting from the award of the Contract or shall have any relationship to the Contractor or officer or employee of the Contractor.

During the term of this Contract Contractor shall not act a Contractor or perform services of any kind for any person or entity whose interest's conflict in any way with those of the County. Contractor shall at all times comply with the terms of the Political Reform Act and the local conflict of interest code. Contractor shall immediately disqualify itself and shall not use its official position to influence in any way, any matter coming before the County in which the Contractor has a financial interest as defined in Government Code section 87103. Contractor represents that it has no knowledge of any financial interests which would require it to disqualify itself from any matter on which it might perform services for the County.

"Contractor" means an individual who, pursuant to a contract with a state or local agency:

(A) Makes a governmental decision whether to:

1. Approve a rate, rule or regulation;
2. Adopt or enforce a law;
3. Issue, deny, suspend, or revoke any permit, license, application, certificate, approval, order, or similar authorization or entitlement;
4. Authorize the County to enter into, modify, or renew a contract provided it is the type of contract that requires County approval;
5. Grant County approval to a contract that requires County approval and to which the County is a party, or to the specifications for such a contract;
6. Grant County approval to a plan, design, report, study, or similar item;
7. Adopt, or grant County approval of, policies, standards, or guidelines for the County, or for any subdivision thereof; or

(B) Serves in a staff capacity with the County and in that capacity participates in making a governmental decision as defined in Regulation 18702.2 or performs the same or substantially all the same duties for the County that would otherwise be performed by an individual holding a position specified in the County's Conflict of Interest Code.

DISCLOSURE DETERMINATION: [mark appropriate box below]

- ☐ 1. Contractor will not be "making a government decision" or "serving in a staff capacity" as defined in Sections A and B above. No disclosure required.
- ☐ 2. Contractor will be "making a government decision" or "serving in a staff capacity" as defined in either Section A or B above. As a result, Contractor shall be required to file a Statement of Economic Interest with the Clerk of the Board of Supervisors in a timely manner as required by law.



Attachment L Campaign Contributions Disclosure (SB 1439)

PROPOSAL INFORMATION

Request for Proposal Title: _____

Request for Proposal Number: _____

DEFINITIONS

Actively supporting the matter: (a) Communicate directly with a member of the Board of Supervisors or other County elected officer [Sheriff, Assessor-Recorder-Clerk, District Attorney, Auditor-Controller/Treasurer/Tax Collector] for the purpose of influencing the decision on the matter; or (b) testifies or makes an oral statement before the County in a proceeding on the matter for the purpose of influencing the County's decision on the matter; or (c) communicates with County employees, for the purpose of influencing the County's decision on the matter; or (d) when the person/company's agent lobbies in person, testifies in person or otherwise communicates with the Board or County employees for purposes of influencing the County's decision in a matter.

Agent: A third-party individual or firm who, for compensation, is representing a party or a participant in the matter submitted to the Board of Supervisors. If an agent is an employee or member of a third-party law, architectural, engineering or consulting firm, or a similar entity, both the entity and the individual are considered agents.

Otherwise related entity: An otherwise related entity is any for-profit organization/company which does not have a parent-subsidary relationship but meets one of the following criteria:

- (1) One business entity has a controlling ownership interest in the other business entity;
- (2) there is shared management and control between the entities; or
- (3) a controlling owner (50% or greater interest as a shareholder or as a general partner) in one entity also is a controlling owner in the other entity.

For purposes of (2), "shared management and control" can be found when the same person or substantially the same persons own and manage the two entities; there are common or commingled funds or assets; the business entities share the use of the same offices or employees, or otherwise share activities, resources or personnel on a regular basis; or there is otherwise a regular and close working relationship between the entities.

Parent-Subsidiary Relationship: A parent-subsidiary relationship exists when one corporation has more than 50 percent of the voting power of another corporation.

Proposers must respond to the questions on the following page. If a question does not apply respond N/A or Not Applicable.

1. Name of Entity/Individual submitting a proposal: _____
2. Name of Principal (i.e., CEO/President) of entity listed in Question No. 1, if the individual actively supports the matter and has a financial interest in the decision:
3. Name of agent:

Company Name	Agent(s)

4. Name of Subcontractor(s) (including Principal and Agent(s)) that will be providing services/work under the proposed contract if the subcontractor (1) actively supports the matter and (2) has a financial interest in the decision and (3) will be possibly identified in the contract/agreement with the County or board governed special district.

Company Name	Subcontractor(s):	Principal and/or Agent(s):

5. Is the entity listed in Question No.1 a nonprofit organization under Internal Revenue Code section 501(c)(3)?
Yes ☐ No ☐
6. Was a campaign contribution, of more than \$250, made to any member of the San Bernardino County Board of Supervisors or other County elected officer on or after January 1, 2023, by any of the individuals or entities listed in Question Nos. 1-4?

No ☐ If **no**, please skip Question No. 7 and sign and date this form.

Yes ☐ If **yes**, please continue to complete this form.

7. Name of Board of Supervisor Member or other County elected officer:

Name of Contributor: _____

Date(s) of Contribution(s): _____

Amount(s): _____

Please add an additional sheet(s) to identify additional Board Members/County elected officers to whom anyone listed made campaign contributions.

By signing the Proposal, Proposer certifies that the statements made herein are true and correct. The Proposer understands that the individuals and entities listed in Question Nos. 1-4 are prohibited from making campaign contributions of more than \$250 to any member of the Board of Supervisors or other County elected officers while this matter is pending and for 12 months after a final decision by the County.

Exhibit A



Purchasing

**LOCAL VENDOR PREFERENCE
SELF-CERTIFICATION**

Vendor Legal Name _____
Vendor Representative _____
Vendor Address _____
City, State, Zip _____
Phone _____
Email _____
Federal Tax ID # _____

TO BE CERTIFIED AS A LOCAL VENDOR, eligible for Local Vendor Preference (any vendor, contractor or consultant, hereafter "vendor") I certify under penalty of perjury that _____ meets all of the following requirements:

- The main office (headquarters) or a major regional office is located within the boundaries of San Bernardino County;
- Twenty-five percent (25%) of full-time management employees and twenty-five percent (25%) of full-time regular employees work from locations in the County;
- Employ at least one full-time or two part-time employees with primary residence in the County;
- "Point of sale" for purposes of reporting sales tax to the State Board of Equalization (if applicable) is within the boundaries of the County and payment of any local share of sales tax goes to the County or a city within the County. (If the local business has more than one sales office in the State of California, the office located in the County shall be the point of sale for sales tax calculation);
- Not delinquent in any taxes or other payments to the County;
- Possess a valid and verifiable business license in _____ (if required);
Location(s)
- Have been open and established since _____ ;
Date
- Have had on-going business activity in the field of _____ since _____
(which is at least six months prior to the issuance of the solicitation); *Nature of Business* *Date*
- Have not, within five years prior to the date this form is signed, admitted guilt or been found guilty by any court or state or federal regulatory enforcement agency of violation of any criminal law or any law or regulation regarding fraud and not federally debarred; and
- Not suspended or debarred from participation in the County, in the scope of work that is the subject of the solicitation.

FURTHER, I acknowledge by initialing the following boxes that I understand:

- _____ If any time after being certified as a local vendor, a change in status occurs rendering a vendor no longer eligible for such status, the vendor must notify the Purchasing Agent prior to responding to a solicitation or accepting an award. Self certification is good for a period of five years, then must be renewed.
- _____ False certifications shall be immediate grounds for rejection of any proposal or bid or if the proposal or bid is awarded, grounds for voiding the proposal or bid, terminating any agreement, and seeking damages thereto. Failure to certify the above information shall result in the proposal or bid being considered by the County without any adjustment for a local vendor.
- _____ Self-certification provided by the vendor requesting a local preference shall be submitted to the Purchasing Agent under penalty of perjury. No person or business shall make a false representation to a County official or employee for the purpose of influencing the certification or denial of certification of any local vendor.
- _____ Any vendor that falsely obtains certification shall be ineligible to transact business with the County for not less than one year and not more than three years, at the discretion of the Purchasing Agent. This penalty shall also apply to any vendor that previously obtained proper certification and, because of a change in its status would no longer be eligible for certification, and fails to notify the County of this information prior to responding to a solicitation or accepting an award.

I am an authorized representative of _____ and can legally bind the company.

Date *Name* *Position*

Reviewed By: _____